



CHAPTER lxxviii.

An Act to authorise the construction of new works and taking of lands by the Great Central Railway Company to sanction and confirm agreements between the Great Central Railway Company and the Blyton and Frodingham Light Railway and North Lindsey Light Railways Companies and to authorise the construction of new railways and wharves in the county of Lincoln by the North Lindsey Light Railways Company to authorise the construction of new railways by the Great Central Railway Company and the Great Northern Railway Company for the purposes of the West Riding and Grimsby Railways to make further provision with respect to the Great Western and Great Central Joint Railways and for other purposes. A.D. 1907

[26th July 1907.]

WHEREAS it is expedient that the Great Central Railway Company (hereinafter called "the Company") should be authorised to construct further works and purchase additional lands for the improvement of their undertaking and the accommodation of the traffic thereon :

And whereas the Company own and work a system of railways in the county of Lincoln including a railway from Doncaster by way of Thorne Junction to Barnetby and Grimsby a railway from Gainsborough to Barnetby and a railway from Ulceby to New Holland and Barton-on-Humber on the southern bank of the River Humber :

And whereas the Blyton and Frodingham Light Railway Company are authorised by the Blyton and Frodingham Light Railway Order 1906 to construct a railway along the eastern

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And whereas the North Lindsey Light Railways Company (hereinafter called "the North Lindsey Company") are authorised by the North Lindsey Light Railways Order 1900 the North Lindsey Light Railways (Amendment) Order 1905 and the North Lindsey Light Railways (Extensions) Order 1906 to construct a railway northwards from Frodingham to Winteringham on the southern bank of the River Humber and railways from Winteringham eastwards to Barton-on-Humber and westwards to Alkborough on the eastern bank of the estuary of the River Trent and part of the said railways have been completed and are opened for public traffic and other parts thereof are in course of construction :

And whereas it is expedient and would be for the public and local advantage that the railway of the Blyton and Frodingham Light Railway Company and the railways of the North Lindsey Company should be worked managed and maintained by the Company in pursuance of the agreements set forth in the Second and Third Schedules to this Act :

And whereas it is expedient and will be for the public and local advantage that the North Lindsey Company should be authorised to construct the railways and wharves at Winteringham hereinafter described :

And whereas it is expedient that the Company and the Great Northern Railway Company should be authorised to construct the railways hereinafter described in connection with their West Riding and Grimsby Railway and to purchase for the purposes of that railway the additional lands hereinafter described :

And whereas plans and sections showing the lines and levels of the railways and works authorised by this Act and the lands required or which may be taken for the purposes thereof and also books of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands and plans of the other lands by this Act authorised to be taken compulsorily with books of reference thereto were duly deposited with the respective clerks of the peace for the counties of Derby Lincoln (parts of Lindsey) and York (West Riding) :

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And whereas it has been found expedient to alter the line of a portion of the Railway No. 1A at Winteringham originally proposed to be authorised by the Bill for this Act and plans and sections showing the lines and levels of such alteration and a book of reference thereto containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands through which the said alteration will pass have been deposited with the clerk of the peace for the county of Lincoln (parts of Lindsey):

And whereas the plans section and books of reference firstly hereinbefore mentioned as amended by the plans sections and book of reference lastly hereinbefore mentioned are in this Act referred to as the deposited plans sections and books of reference respectively:

And whereas it is expedient that the powers hereinafter referred to granted by former Acts for the compulsory purchase of lands should be revived and extended and the time limited for the completion of the works hereinafter referred to should be extended as hereinafter provided:

And whereas the Company were authorised by section 30 of the Act of 1900 to raise money by the creation and issue of three and a half per centum second debenture stock for the purposes specified in section 31 of that Act and the amount of the said second debenture stock has been increased by section 128 of the Act of 1904 section 79 of the Act of 1905 and section 21 of the Act of 1906 for the purposes specified in those sections and it is expedient that the said amount should be further increased for the purposes hereinafter specified:

And whereas by the Great Western and Great Central Railway Companies Act 1899 (hereinafter referred to as "the Act of 1899") the Great Western and Great Central Railways Joint Committee (hereinafter referred to as "the Joint Committee") were incorporated and by that Act there were conferred upon and vested in the Joint Committee powers for the improvement of certain existing railways and for the construction and maintenance of certain new railways which together form a continuous line of railway from Northolt Junction to Grendon Underwood and the Joint Committee have constructed and opened the said railways for public traffic:

And whereas it is expedient that the railway of the Great Western Railway Company between Princes Risborough and

A.D. 1907. Aylesbury and the interest of that company in the Aylesbury Joint Station should be vested in the Joint Committee and should form part of the joint undertaking :

And whereas the Joint Committee possess no railway rolling stock but the working of their undertaking has hitherto been conducted by either the Company or the Great Western Railway Company (therein and hereinafter collectively referred to as "the Two Companies") and it is expedient that the administration and working of the said joint undertaking should be controlled by the Two Companies and with that object that the Joint Committee should be authorised to grant a lease of the joint undertaking to the Two Companies as hereinafter provided :

And whereas in pursuance of section 33 of the Act of 1899 the money expended upon the construction of the joint railways between Ashendon Junction and Northolt Junction to the thirty-first day of December one thousand nine hundred and six amounted to one million seven hundred and eighty-eight thousand six hundred and thirty pounds and was in the first instance provided by the Great Western Railway Company and in pursuance of section 34 of the Act of 1899 the Company are now liable to pay to the Great Western Railway Company as a fixed annual toll or payment a sum equal to interest at the rate of four per centum on one half of the total amount of capital so expended by the Great Western Railway Company on the joint railways until payment shall have been made by the Great Central Railway Company to the Great Western Railway Company of the said one half of the capital expenditure :

And whereas the lines of the Joint Committee are still incomplete and heavy works are still in course of construction and further works for the improvement and development of the lines and the traffic over the same are in contemplation and it is computed that the moneys required for the completion of the system will amount to the sum of six hundred thousand pounds :

And whereas the Joint Committee are not now authorised to issue capital and it is expedient that they should be authorised to create and issue a capital stock upon the security of the rent payable in respect of the aforesaid lease and that the Company and the Great Western Railway Company should be authorised to guarantee the payment of the interest on such

stock as in this Act provided and that provision should be made for the repayment to the Great Western Railway Company out of the proceeds of the issue of such stock of the moneys provided by them for the construction of the said joint railways : A.D. 1907.

And whereas by section 30 of the Act of 1899 it was enacted that the Joint Committee and the Two Companies or either of them might enter into and carry into effect agreements for and with respect to the construction maintenance and use by either of the Two Companies of any portion or portions of (inter alia) the railway thereby authorised and for the transfer to and vesting of such portion or portions in either of the Two Companies and on the completion of any such agreement the powers by that Act conferred upon the said Joint Committee should subject to the provisions of such agreement and so far as might be necessary for giving effect thereto be exerciseable by the company by whom such portion or portions of railway were proposed to be constructed maintained or used or in whom the same were to be vested as fully in all respects as if such company had in respect of such portion or portions of railway been named in the Act of 1899 in place of the said Joint Committee :

And whereas it has been agreed by and between the Two Companies that the portion of the railway authorised by the Act of 1899 between its termination by a junction with the extension to London of the Great Central Railway at Grendon Underwood aforesaid and the junction at Ashendon between the Great Western Railway Company's Ashendon and Aynho Railway authorised by the Great Western Railway (New Lines) Act 1905 and the railway of the Joint Committee shall be transferred to and vested in the Company :

And whereas it is expedient that provision should be made as by this Act prescribed for the other purposes of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

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PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Great Central Railway Act 1907.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—New works and additional lands for Great Central Railway undertaking.

Part III.—As to new railways &c. in Lincolnshire.

Part IV.—New works and additional lands for West Riding and Grimsby Railways.

Part V.—General provisions applicable to the taking of lands and construction of works.

Part VI.—Revival of powers and extensions of time.

Part VII.—Capital.

Part VIII.—Great Western and Great Central Joint Railways.

Part IX.—Miscellaneous.

Incorporation
of Acts.

3. The Lands Clauses Acts ;

The Railways Clauses Consolidation Act 1845 ;

Part I. (relating to the construction of a railway) Part II. (relating to extension of time) of the Railways Clauses Acts 1863 ;

The clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The conversion of the borrowed money into capital ;

The consolidation of the shares into stock;

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The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

And Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) Part III. (relating to debenture stock) and Part IV. (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts;

are (except where expressly varied by this Act) incorporated with and form part of this Act.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act the expression—

Interpretation.

“The Company” means the Great Central Railway Company;

“The North Lindsey Company” means the North Lindsey Light Railways Company;

“The railways” and “the railway” mean the new railways authorised by this Act;

“High-water mark” and “low-water mark” mean respectively high-water mark and low-water mark of ordinary spring tides Admiralty datum;

“The commissioners” means the Humber Conservancy Commissioners;

“The Act of 1900” means the Great Central Railway Act 1900;

“The Act of 1901” means the Great Central Railway Act 1901;

“The Act of 1902” means the Great Central Railway Act 1902;

“The Act of 1903” means the Great Central Railway Act 1903;

“The Act of 1904” means the Great Central Railway Act 1904;

“The Act of 1905” means the Great Central Railway Act 1905;

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“The Act of 1906” means the Great Central and Derbyshire Railways Act 1906;

“The North Lindsey Order 1900” means the North Lindsey Light Railways Order 1900;

“The North Lindsey Order 1905” means the North Lindsey Light Railways (Amendment) Order 1905;

“The North Lindsey Order 1906” means the North Lindsey Light Railways (Extensions) Order 1906;

“The North Lindsey Orders” means the North Lindsey Orders 1900 1905 and 1906.

PART II.

NEW WORKS AND ADDITIONAL LANDS FOR GREAT CENTRAL RAILWAY UNDERTAKING.

Power to
widen rail-
ways.

5. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the widenings of railways hereinafter described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes or for the general purposes of their undertaking The widenings of railways hereinbefore referred to and authorised by this Part of this Act are—

In the county of York (West Riding)—

A Widening (No. 1) 9·4 chains or thereabouts in length wholly in the township and county borough of Sheffield of the Company's Manchester to Sheffield Railway on the southern side thereof commencing at a point two chains or thereabouts measured in a westerly direction along the existing railway from the western face of Bridgehouses Tunnel and terminating at a point two chains or thereabouts measured in an easterly direction along the existing railway from the eastern face of the aforesaid tunnel;

and in connection therewith the Company may open out the said Bridgehouses Tunnel and maintain the existing railway of the Company and the said widening thereof in open cutting:

And the Company may make and maintain as aforesaid— A.D. 1907.

A Widening (No. 2) 7·00 chains or thereabouts in length wholly in the township and county borough of Sheffield of the Company's branch railway into Park Yard Sheffield on the northern side thereof commencing at a point two and a half chains or thereabouts measured in a westerly direction along the existing railway from the western abutment of the bridge over the Sheffield and South Yorkshire Navigation and terminating at a point four and a half chains or thereabouts measured in an easterly direction along the existing railway from the aforesaid abutment:

A Widening (No. 3) 1 furlong 6·00 chains or thereabouts in length of the Company's Barnsley to Doncaster Branch Railway commencing in the parish of Conisbrough in the rural district of Doncaster at a point distant eight chains measured in a westerly direction along the said railway from the centre of the bridge carrying the said railway over the River Don and terminating in the parish of Cadeby in the rural district of Doncaster at a point distant eight chains measured in an easterly direction along the said railway from the centre of the said bridge.

In the county of Derby—

A Widening (No. 4) 1 furlong 4·00 chains or thereabouts in length of the Company's Manchester to Sheffield Railway on both sides thereof wholly in the parish of Charlesworth in the rural district of Glossop commencing at a point ten chains or thereabouts measured in a westerly direction along the said railway from the centre of the level crossing known as Torside level crossing where the public road from Glossop to Crowden crosses the said railway and terminating at a point four chains or thereabouts measured in an easterly direction along the said railway from the centre of the aforesaid level crossing.

6. The Company may make the arches of the bridge for carrying Widening No. 2 over the road next hereinafter mentioned of any height and span not less than the height and span hereinafter mentioned in connection therewith (that is to say):— Height and span of bridge.

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No. on deposited Plan.	Parish.	Description of Road.	Height.	Span.
14	Township of Sheffield	Public road	14 ft. 6 ins.	25 ft.

Power to cross a certain road on level.

7. Subject to the provisions in the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the Company may in the construction of Widening No. 4 carry the same with a single line only whilst the said widening shall consist of a single line and afterwards with a double line only across and on the level of the road hereinafter mentioned (that is to say) :—

No. on deposited Plan.	Parish.	Description of Road.
2	Charlesworth - -	Public road.

Power to divert road as shown on deposited plans.

8.—(1) The Company may in constructing Widening No. 4 divert the public road leading from Glossop to Crowden and numbered on the deposited plans 2 in the parish of Charlesworth in the manner shown upon the deposited plans and sections and subject to the provisions of this section may stop up and cause to be discontinued as a road so much of the existing road as will be rendered unnecessary by the new portion of road shown on the said plans.

(2) The stopping up of the existing road shall not take place until two justices shall have certified that the new portion of road has been completed to their satisfaction and is open for public use.

(3) Before applying to the justices for their certificate the Company shall give to the road authority seven days' notice in writing of their intention to apply for the same.

(4) As from the date of the said certificate all public rights of way over or along the diverted portion of the existing road shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the said diverted portion of road.

(5) The new portion of road to be made under the authority of this Act shall unless otherwise agreed when made and completed be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the existing road now devolves. A.D. 1907.

9. For the protection of the county council of the administrative county of Derby (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council be observed and have effect (that is to say):— For protection of Derbyshire County Council.

- (1) Contemporaneously with the construction of the Widening (No. 4) by this Act authorised the Company shall construct over the Torside level crossing as so widened a stone brick or iron footbridge having a clear width throughout of not less than five feet with rails or parapets on each side of not less than five feet in height for the full length of the bridge and its approaches such approaches to be as easy as practicable and without gates or other obstructions and the steps thereof shall be constructed with a half-landing:
- (2) The said bridge and approaches and the works connected therewith shall not interfere with the existing road and shall be executed by and at the cost in all things of the Company and to the reasonable satisfaction of and in accordance with plans sections and specifications to be previously approved in writing by the county surveyor provided that if he does not signify his approval or disapproval within twenty-eight days after the same shall have been left at his office he shall be deemed to have approved thereof:
- (3) The Company shall at all times for the free use of the public keep open and maintain the said bridge and the substructure thereof and the approaches thereto and the works connected therewith in good order and condition to the reasonable satisfaction of the county surveyor:
- (4) If any difference arises between the Company and the council under or in relation to any provision of this section such difference shall be determined by an

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engineer to be nominated by the President of the Institution of Civil Engineers on the application of the Company or the council.

For protection of corporation of Sheffield.

10. For the protection of the lord mayor aldermen and citizens of the city of Sheffield (in this section called "the corporation") the following provisions shall unless otherwise agreed upon between the Company and the corporation have effect with respect to the widenings of railways hereinafter referred to situate within the city and county borough of Sheffield (that is to say):—

Widening No. 1—

- (1) All bridges and works to be erected and constructed under the powers of this Act for the purpose of carrying Rock Street and Pitsmoor Road over the Manchester to Sheffield Railway of the Company in lieu of the existing tunnel situate beneath the said streets shall be erected and constructed to the reasonable satisfaction of the city surveyor and the roadways over such bridges and all mains and pipes and conduits belonging to the corporation which may be taken up or interfered with in the execution of the said works shall be relaid at the cost of the Company and under the superintendence and to the reasonable satisfaction of the said surveyor:

Widening No. 2—

- (2) All works to be constructed by the Company in connection with the widening of their branch railway into Park Yard shall so far as the same affect any property belonging to the corporation be executed under the superintendence and to the reasonable satisfaction of the city surveyor and all culverts sewers water mains electric cables pipes or other works belonging to the corporation taken up or interfered with in executing any such works shall be replaced and relaid by the Company at their own cost and subject as aforesaid to the superintendence and reasonable satisfaction of the city surveyor as aforesaid and the cost of repairing any damage or injury occasioned by the said works to any such culvert sewer water main

electric cable or other pipe or work by reason of any such interference shall be payable by the Company to the corporation : A.D. 907.

- (3) The Company shall execute the widening and reconstruction of the bridge carrying the said branch railway into Park Yard so that the span of the bridge as reconstructed and widened shall not be of a less width than the present width of Blast Lane adjoining and so that the headway shall not be less than the headway of the existing bridge :
- (4) If any difference arise between the Company and the corporation concerning any work to be or not to be executed or any moneys to be paid under this section such difference shall be settled by an engineer to be appointed by the Company and the corporation or in default of agreement by the President of the Institution of Civil Engineers upon the application of either party :
- (5) Nothing in this Act contained shall be in any way construed to exempt the Company from their obligation to maintain the surface of the roadway of any bridge carrying Rock Street and Pitsmoor Road Sheffield or either of those streets over the Company's Manchester to Sheffield Railway.

11. Notwithstanding anything in this Act contained the following provisions for the benefit and protection of the lord mayor aldermen and citizens of the city of Manchester (in this section called "the corporation") shall unless otherwise agreed in writing between the Company and the corporation be binding upon the Company and full effect shall be given thereto :— For protection of Manchester Corporation.

- (1) The Company shall in constructing and maintaining the works by this Act authorised and in exercising any of the powers by this Act conferred affecting any of the works lands or property of the corporation or any road public or private or other means whereby access at the present time is or can be obtained to such lands or works shall observe and perform the following provisions (namely) :—

All such works of the Company crossing situate upon or affecting the aforesaid works lands or

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property of the corporation or any road or means of access thereto shall be executed at the expense of the Company under the superintendence and to the reasonable satisfaction of the engineer of the corporation and according to plans sections and specifications previously submitted to such engineer and approved by him in writing;

The Company shall make good to the corporation any damage or injury to the aforesaid works lands or property of the corporation or the roads or other means of access thereto by reason of the construction of the said works:

- (2) Nothing in this Act contained shall prejudice or affect the rights and easement granted to the corporation by the Right Honourable Lord Howard of Glossop by deed dated the thirtieth day of April one thousand eight hundred and seventy-four whereby the corporation are empowered to place tie and maintain the puddle trench of the embankment of the Woodhead Reservoir under certain land in the township of Glossop in the county of Derby:
- (3) If any difference shall arise between the corporation and the Company or their respective engineers touching the matters referred to in this section or anything to be done or not to be done or any money to be paid thereunder such difference shall be referred to and determined by an engineer to be nominated by such respective engineers or failing agreement to be nominated by the President of the Institution of Civil Engineers on the application of the corporation or the Company.

For protection of
Denaby and
Cadeby Main
Collieries
Limited.

12. For the protection of the Denaby and Cadeby Main Collieries Limited (in this section referred to as "the Colliery Company") the following provisions shall unless otherwise agreed between the Colliery Company and the Company have effect (that is to say):—

- (1) Notwithstanding anything in this Act contained or shown on the deposited plans the Company shall not enter upon take or use any portion of the property numbered on the deposited plans 2 in the parish of Cadeby which lies to the northward of the line

coloured red on the plan signed by Charles Arthur Rowlandson on behalf of the Company and by William Henry Chambers on behalf of the Colliery Company and dated the eighth day of April one thousand nine hundred and seven : A.D. 1907.

- (2) Nothing in this Act contained shall prejudice alter or affect the rights powers authorities and privileges of the Colliery Company conferred by an agreement dated the twelfth day of April one thousand nine hundred and four and made between the Company of the one part and the Colliery Company of the other part or lessen or affect the duties and obligations of the Company under the said agreement.

13. For the protection of the Sheffield and South Yorkshire Navigation Company (in this section called "the Navigation Company") the following provisions shall unless otherwise agreed between the Company and the Navigation Company have effect (that is to say) :— For protection of Sheffield and South Yorkshire Navigation.

- (1) The Company shall construct and maintain the bridge for carrying the Widening No. 2 by this Act authorised over the Sheffield Canal towing-path and wharf of the Navigation Company at Sheffield as a girder bridge of one span with a clear width between the abutments sufficient to carry the said bridge over the present waterway and over a towing-path seven feet wide and the underside of the girders of the said bridge shall not be constructed at a lower level than the underside of the girders of the existing bridge carrying the branch railway of the Company into the Park goods station over the said canal at Sheffield :
- (2) The Company shall construct and maintain the bridge carrying the Widening No. 3 by this Act authorised across the navigation of the Navigation Company at Conisbrough as a girder bridge of three spans each with a clear width between the abutments of not less than thirty feet measured on the square and the underside of the girders of the said bridge shall not be constructed at a lower level than the underside of the girders of the existing bridge carrying the Barnsley to Doncaster Branch Railway of the

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Company over the said navigation at Conisbrough and the Company shall from time to time and at all times thereafter at their own expense maintain the towing-path under the said bridge for a distance of one hundred feet from the centre of the existing bridge in a westerly direction :

- (3) The Company shall at all times hereafter maintain the said bridges of the minimum headways following (namely) Widening No. 2 headway twelve feet six inches above the present ordinary level of the water in the said canal at Sheffield and Widening No. 3 headway twenty feet above the present ordinary level of the water in the navigation at Conisbrough :
- (4) The foundations of the piers or abutments of the said bridges shall be carried down to such depths below the ordinary level of the surface of the water in the navigation and shall be placed in such positions as shall be reasonably fixed by the engineer for the time being of the Navigation Company :
- (5) The Company as well during the construction as during any repairs of the bridges shall leave the navigable waterway and towing-path free and uninterrupted except so far as shall be reasonably agreed between the Navigation Company and the Company :
- (6) The Company shall during such construction exhibit every night from sunset to sunrise a light or lights which shall be kept burning by and at the expense of the Company for the guidance of vessels using the navigation. Such light or lights shall be of such description and be so used and placed as the Navigation Company in writing shall reasonably require :
- (7) All works crossing or affecting the navigation shall be carried on uninterruptedly when commenced and shall be completed with all reasonable despatch and all scaffolding piling and materials affecting the waterway or towing-path shall be removed as soon as the work for which they are required has been completed and in the meantime shall be kept in proper repair and well and sufficiently lighted :

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(8) All works crossing or affecting the navigation shall be constructed and maintained so that the traffic of the navigation shall not except as herein expressly provided be in any way obstructed impeded or interfered with and such maintenance shall be effected under the superintendence and to the reasonable satisfaction of the Navigation Company but in all things at the expense of the Company :

(9) The Company shall bear and on demand pay to the Navigation Company the reasonable expense of the employment by the Navigation Company of a sufficient number of inspectors and watchmen to watch the navigation during the construction of the works by this Act authorised crossing or in any way affecting the navigation and for preventing (except as aforesaid) any such obstruction or interference or any danger or accident from the acts or default of the Company or their contractors or the servants workmen or other persons in their respective employ :

(10) If by reason of the execution or maintenance of any of the works or any proceedings of the Company or any act or omission of the Company or their contractors or of any officer servant or workman or other person employed by the Company or such contractors the navigation or any of the works thereof be injured or damaged such injury or damage shall forthwith be made good by the Company at their own cost and in default thereof the Navigation Company may make good the same and recover the reasonable cost thereof :

(11) The Company shall indemnify the Navigation Company from any loss or damage they may suffer and from any compensation they may be required to pay for any such obstruction (except as aforesaid) interruption or interference with the traffic of the navigation or any accident which shall have been occasioned by any such act or default as in this section is mentioned :

(12) Nothing in this section shall extend to prevent the Navigation Company or any owner of vessels boats keels or barges using the navigation from recovering from the Company any special damage that shall be

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sustained by them or him for or in consequence of any such act or default as in this section is specified :

- (13) Any works which may be constructed under the powers of this Act over or affecting any of the waterways or canals of the Navigation Company shall be carried out under the supervision and to the reasonable satisfaction of the engineer of the Navigation Company and in accordance with plans sections and specifications previously submitted to and reasonably approved of by such engineer :
- (14) Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not enter upon take or use any lands belonging to the Navigation Company except by agreement with the Navigation Company but the Company may purchase and take and the Navigation Company shall sell and grant to the Company accordingly an easement or right of using the same so far as may be necessary for the purpose of carrying the railways across the navigation :
- (15) If any difference arise between the Company and the Navigation Company under this section such difference shall be determined by an engineer to be appointed (unless otherwise agreed on) on the application of either party by the President of the Institution of Civil Engineers but nothing in this Act shall be deemed to enable the said arbitrator to direct that any work shall be made of less dimensions than by this section is prescribed in that behalf.

For protec-
tion of Great
Northern
Railway
Company.

14. The Great Northern Railway Company shall have and be entitled to and may exercise the same running and other powers rights and privileges respectively over and in respect of the Widenings Nos. 1 2 3 and 4 by this Act authorised as they now respectively have or are entitled to or may exercise over and in respect of the portions of railways by this Act authorised to be widened.

Widenings
to be part of
Company's
undertaking.

15. The widenings of railway which the Company are by this Part of this Act authorised to construct shall for the purposes of tolls rates and charges and for all other purposes whatsoever be deemed to be part of the Company's undertaking.

16. The Company may hold and may use and appropriate for the general and other purposes connected with their undertaking the following lands which have already been acquired by them or on their behalf and are delineated on plans signed in duplicate by Sir Lewis McIver Baronet the Chairman of the Select Committee of the House of Commons to whom the Bill for this Act was referred of which plan one copy has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments in the House of Lords Provided that the said lands so already acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section The lands above referred to and by this section authorised to be held used and appropriated are as follows:—

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Company
may hold
certain lands
already ac-
quired.

In the county of Chester—

Certain lands in the township and borough of Dukinfield bounded on the north side by Clarendon Street on the south side by the Company's railway on the east by King Street and on the west by Astley Street:

Certain lands in the township and borough of Dukinfield situate on the south side of the Company's railway and bounded on the south-west by Dewsnap Lane Bridge and on the north-east by Wood Street:

Certain lands in the township of Poulton-cum-Seacombe in the urban district of Wallasey bounded on the south by the Dock Road on the north by the works belonging or reputed to belong to Messrs. Currie Rowlands and Company on the west in part by Kelvin Street and on the east in part by the premises known as the Swan Hotel.

In the county of Derby—

A strip of land in the parish of Charlesworth situate on the southern side of the Company's main line of railway and extending from Torside level crossing for a distance of thirty-five chains to the eastward thereof:

A strip of land in the parish of Charlesworth situate on the southern side of the Company's main line of railway and extending for a distance of fifty-eight chains to the westward and forty chains to the eastward of Crowden Station booking office.

A.D. 1907.

In the county of Nottingham—

A strip of land in the parish and urban district of Worksop situate on the northern side of the Company's railway extending from the public road leading from Gateford Bar to Worksop in an easterly direction for a distance of forty-two chains or thereabouts:

A strip of land in the parish and urban district of Worksop situate on the south side of the Company's railway between the Shireoaks East Junction signal box and Gateford Road:

Certain lands in the parish of Ordsall in the borough of East Retford constituting a triangular plot of land lying to the west side of the Company's branch railway leading into Retford passenger station formerly belonging or reputed to belong to Thomas Frederick Newman Barderall.

In the county of York (West Riding)—

A strip of land in the township and county borough of Sheffield situate on the south side of the Company's main line between Dolphin Street and Kettle Bridge and also to the east of Kettle Bridge for a distance of five chains or thereabouts from the said bridge:

Certain lands in the township or parish of Tankersley situate on the east side of the Company's main line lying between two points respectively measured ten chains or thereabouts and eighty-five chains or thereabouts in an easterly direction from the booking office of Deepcar and Stockbridge Station.

Diversion of
footpaths at
Wath-upon-
Dearne.

17.—(1) The Company may divert in the manner shown on the deposited plans the public footpaths hereinafter described (that is to say):—

In the township or parish and urban district of Wath-upon-Dearne the Company may make a further diversion of the footpath authorised to be diverted by the Act of 1904 situated on the north side of the Company's Barnsley to Barnetby Railway and to the westward of Moor Road level crossing by stopping up the authorised and existing footpath between Moor Road and the south-west corner of field numbered 429 on the sheet No. CCLXXXIII. 3 of the $\frac{1}{2500}$ Ordnance Survey dated 1890 for the said county and substituting therefor a new footpath along

the occupation road numbered 393 on the aforesaid A.D. 1907.
Ordnance sheet into Moor Road:

In the township or parish and urban district of Wombell and parish of West Melton and urban district of Wath-upon-Dearne the Company may abandon the diversion authorised by the Act of 1904 of the footpath leading from Pontefract Lane otherwise High Gate Road on the southern side of the Great Central Railway level crossing to the towing-path of the Dearne and Dove Canal substituting therefor and for the existing footpath authorised to be diverted a new footpath commencing at a point in the said Pontefract Lane 1·25 chains or thereabouts measured in a northerly direction from the centre of the bridge over the said canal and terminating on the towing-path of the Dearne and Dove Canal 0·5 of a chain to the westward of the said bridge.

(2) The stopping up of the said footpaths authorised by the Act of 1904 and by this Act to be stopped up shall not take place until two justices shall have certified that the new footpaths substituted therefor have respectively been completed to their satisfaction and are open for public use.

(3) Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the footpath to be stopped is situate seven days' notice in writing of their intention to apply for the same.

(4) As from the date of the said certificate all public rights of way over or along the said portion of footpath shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the said portion of footpath stopped up as far as the same is bounded on both sides by lands of the Company.

(5) The new footpath to be made under the authority of this Act shall unless otherwise agreed when made and completed be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the footpaths for which the new footpaths are substituted now devolves.

18. The powers conferred upon the Company by section 56 (Power to lease lands over and adjoining railways of Company) of the Act of 1903 in relation to lands then already acquired

Power to
lease lands.

A.D. 1907. by the Company shall *mutatis mutandis* extend and apply to lands acquired by the Company under the powers of this Act but so that the period of thirty years referred to in subsection (2) of the said section shall with respect to such last-mentioned lands be calculated as from the date of the purchase by the Company of such lands under the authority of this Act.

PART III.

AS TO NEW RAILWAYS &C. IN LINCOLNSHIRE.

Confirming agreement between Blyton and Frodingham Light Railway Company and Company.

19. The agreement made between the Blyton and Frodingham Light Railway Company of the one part and the Company of the other part set forth in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Confirming agreement between North Lindsey Company and Company.

20. The agreement made between the North Lindsey Company of the one part and the Company of the other part set forth in the Third Schedule to this Act is hereby confirmed and made binding on the parties thereto.

Scheduled agreements to be stamped.

21. Within one month of the passing of this Act the Company shall produce to the Commissioners of Inland Revenue the agreements set forth in the Second and Third Schedules to this Act duly stamped and if the Company shall not within such period produce such agreements as aforesaid the *ad valorem* stamp duty with interest thereon at the rate of five pounds per centum per annum from the date of the expiration of the said period of one month shall be recoverable from the Company with full costs of suit and all costs and charges attending the same.

Saving for Postmaster-General.

22. Nothing in this Act or in the agreements set forth in the Second and Third Schedules to this Act shall affect the rights of His Majesty's Postmaster-General under the Telegraph Act 1878 to place and maintain telegraphic lines in under upon along over or across the railways and works comprised in the undertakings of the Blyton and Frodingham Light Railway Company and the North Lindsey Light Railways Company and from time to time to alter such telegraphic lines and to enter upon the land and works comprised in such undertakings respectively for the purposes in the Telegraph Act 1878 specified and the Postmaster-General shall after the passing of this Act be at liberty to exercise all the rights

aforesaid notwithstanding that the undertakings of the said light railway companies respectively are worked by the Company as fully and freely in all respects as he was entitled to do before the passing of this Act. A.D. 1907.

23. During the continuance of the agreements confirmed by this Act for the working of the railways of the Blyton and Frodingham Light Railway Company and the North Lindsey Company by the Company the railways of the said companies shall for the purpose of short distance rates and charges be considered as one railway and in estimating the amount of rates and charges in respect of passengers conveyed partly on the railway of the Company and partly on the railway of the Blyton and Frodingham Light Railway Company or partly on the railway of the Company and partly on the railway of the North Lindsey Company for a less distance than three miles rates and charges may be charged as for three miles and for every mile or fraction of a mile beyond three miles as for one mile only and in estimating the amount of rates and charges in respect of merchandise traffic conveyed partly on the railway of the Company and partly on the railway of the Blyton and Frodingham Light Railway Company or partly on the railway of the Company and partly on the railway of the North Lindsey Company the Blyton and Frodingham Light Railway Company and the North Lindsey Company shall be deemed to be companies connected with the Company and specified in the appendix to the schedule to the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order 1892 confirmed by the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order Confirmation Act 1892. Short distance charges on railways worked by Company.

24. In addition to the other Acts incorporated with this Act the Harbours Docks and Piers Clauses Act 1847 (with the exception of section 12 and unless the Board of Trade shall otherwise require sections 16 to 19) is except where inconsistent with or expressly varied by this Act incorporated with and forms part of this Part of this Act. Further incorporation of Act.

25. Subject to the provisions of this Act the North Lindsey Company may make and maintain in the lines or situation and according to the levels and within the limits of deviation shown on the deposited plans and sections the railways and works hereinafter described with all proper stations sidings junctions approaches works and conveniences and appliances connected New railways and works at Winteringham.

A.D. 1907. therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes or for the general purposes of their undertaking The railways and works hereinbefore referred to and authorised by this Part of this Act are—

In the county of Lincoln (parts of Lindsey) rural district of Glanford Brigg—

A Railway (No. 1) 1 furlong 7·00 chains or thereabouts in length situate wholly in the parish of Winteringham commencing by a junction with Railway No. 1 authorised by the North Lindsey Light Railways Order 1900 at a point on the centre line of that railway measured along the said centre line two and a half chains in a north-westerly direction from the northern boundary fence of Marsh Lane and terminating at the north-western side of Winteringham Haven at or near the high-water mark of the River Humber at a point measured eleven chains in a north-easterly direction from the north-westerly corner of enclosure numbered 61 on the sheet No. VI. 5 of Lincolnshire of the $\frac{1}{2500}$ Ordnance Survey dated 1887 and fifteen and a half chains or thereabouts in a north-easterly direction from the north-western corner of the enclosure numbered 63 on the aforesaid Ordnance sheet:

A Railway (No. 1A) 2 furlongs 2·8 chains or thereabouts in length situate wholly in the parish of Winteringham commencing by a junction with the Railway No. 1 authorised by the North Lindsey Light Railways Order 1900 at a point on the centre line of that railway measured along the said centre line about five chains measured in a south-westerly direction from the northern boundary fence of Marsh Lane and terminating on the foreshore of the River Humber at a point about two chains east of the centre of the channel of Winteringham Haven.

Power to cross certain road on level.

26. Subject to the provisions of the Railways Clauses Consolidation Act 1845 and in Part I. (relating to the construction of a railway) of the Railways Clauses Act 1863 contained in reference to the crossing of roads on the level the North Lindsey Company may in the construction of Railway

No. 1A carry the same with a single line only whilst the said railway shall consist of a single line and afterwards with a double line only across and on the level of the road hereinafter mentioned (that is to say):—

A.D. 1907.

No. on deposited Plan.	Parish.	Description of Road.
9	Winteringham - - - -	Public road.

Provided that the gates to be erected across the said road in pursuance of section 47 of the Railways Clauses Consolidation Act 1845 shall be kept constantly closed across the railway except during the time when engines carriages or trucks shall have occasion to cross the road.

27. Notwithstanding anything contained in this Act or shown upon the deposited plans the North Lindsey Company shall not carry Railway No. 1A across Winteringham Haven north of the sluice of the said haven and notwithstanding the limits of deviation marked upon the deposited plans Railways Nos. 1 and 1A shall not extend into the River Humber beyond the line of low-water mark shown upon the said deposited plans Provided that no deviation in the lines of Railways Nos. 1 and 1A below high-water mark shall be made without the consent in writing of the Board of Trade.

Limits of deviation for Railways Nos. 1 and 1A.

28. The North Lindsey Company may in connection with the railways authorised by this Part of this Act make and maintain upon the lands acquired by them under the provisions of this Act and in the River Humber above low-water mark and in Winteringham Haven within the limits of deviation of Railways Nos. 1 and 1A as restricted by this Act all necessary and convenient embankments walls culverts sluices quays wharves shipping-places landing-places staiths stairs stages moorings buoys beacons signals roads sidings tramways approaches warehouses buildings stations hoists drops machinery and appliances The said quays wharves shipping-places landing-places staiths stairs and stages are hereinafter referred to as "the wharves."

Power to make subsidiary works.

29. Subject to the provisions of the section of this Act of which the marginal note is "For protection of Humber Conservancy Commissioners" the North Lindsey Company may in connection with and for the purposes of this Part of this

Power to dredge.

A.D. 1907. Act dredge deepen scour cleanse and improve the bed channel and foreshore of the River Humber and of Winteringham Haven for the purpose of obtaining preserving or improving the access to the wharves to such extent as the North Lindsey Company may deem necessary or expedient to do in that behalf and may appropriate use and dispose as they think fit of any materials removed in the course of such dredging:

Provided that no dredging operations shall be commenced in the River Humber or Winteringham Haven until the consent in writing of the Board of Trade has been obtained thereto Any such materials excavated or dredged by them from time to time from the Humber as they are unable to use in their works they shall either deposit above high-water mark or shall deposit in such places and situations within the limits of the jurisdiction of the commissioners as the commissioners shall from time to time direct:

Provided further that all materials excavated or dredged under the provisions of this section if deposited below high-water mark shall be deposited in such a position and under such restrictions as may be fixed by the Board of Trade.

For protection of commissioners of sewers for county of Lincoln.

30. For the protection of His Majesty's commissioners of sewers for the county of Lincoln acting in the wapentakes of Manley Corringham and Aslaoe the following provisions shall unless otherwise agreed between the North Lindsey Company and the said commissioners apply and have effect (that is to say):—

(1) The North Lindsey Company shall not make or construct any part of the Railways No. 1 and No. 1A in the parish of Winteringham in the county of Lincoln within ten feet at least from any sewer drain or watercourse under the control of the commissioners of sewers for the county of Lincoln or other drainage authority (such sewer drain or watercourse being hereinafter called "land drain") measured from the foot of the viaduct or embankment of the railways to the edge of such land drain except so far as may be necessary for carrying the railway across and over any land drain:

(2) Wherever the said railways or any portion thereof are constructed by the side of and at a distance of ten feet from any land drain as aforesaid the commissioners of sewers or other drainage authorities shall

be entitled to throw the cleansing or refuse of the whole of the land drains respectively upon the said space of ten feet and also if such space of ten feet shall prove at any time to be insufficient in the opinion of the said commissioners or other drainage authority upon the railway itself but not so as to be an obstruction to the traffic on the railway without previously giving due notice to the Company working the line of railway : A.D. 1907.

Provided that subsections (1) and (2) of this section shall not relate to any part of Winteringham Haven situate to the north of the outfall sluice of the haven drain :

- (3) Any gowts culverts and bridges made by the North Lindsey Company at any time across any land drain shall be made to the satisfaction of the said commissioners or other drainage authority and the North Lindsey Company shall at all times well and sufficiently repair to the satisfaction of the said commissioners or other drainage authority any injury to the said gowts culverts and bridges done by or arising from the construction of the said railways and also the sea gowts culverts bridges and other works of sewers crossed over or otherwise used or interfered with by the railways at any time and shall pay to the said commissioners or other drainage authority the whole or such part of the costs of reconstructing or repairing such sea gowts culverts bridges and other works of sewers as the said commissioners or other drainage authority shall reasonably require :
- (4) In the event of any slipping in the banks or sides of the land drains caused by or arising from the construction of the railways such slips shall be forthwith removed by the North Lindsey Company on notice being given by the said commissioners or other drainage authority to the North Lindsey Company and the North Lindsey Company shall stake pile or otherwise make secure the said banks and land drains at all times to the reasonable satisfaction of the said commissioners or other drainage authority and in default thereof the said commissioners or other

A.D. 1907.

drainage authority may execute all necessary works and repairs to secure the said banks or sides as aforesaid and may recover the costs and expenses thereof from the North Lindsey Company:

- (5) Nothing in this Act shall be construed to authorise or empower the North Lindsey Company to interfere with the works of the commissioners so as to lessen the flow of water from the haven drain into Winteringham Haven and thence into the Humber:
- (6) The said commissioners or other drainage authority and their officials and workmen shall for the purposes of their business at all times have a free right of way subject to the necessities of the traffic on the railway over and across the railway where the same crosses any land drains under the control of the said commissioners or other drainage authority:
- (7) The permanent way of Railways Nos. 1 and 1A in the parish of Winteringham shall where they cross the embankment of the River Humber be constructed and maintained where they so cross at a minimum height of 17·66 feet above Ordnance datum.

For protection of rural district council of Glanford Brigg.

31. For the protection of the rural district council of Glanford Brigg in the county of Lincoln (in this section called "the council") the following provisions shall have effect unless otherwise agreed in writing between the North Lindsey Company and the council:—

- (1) The North Lindsey Company shall not in any way interfere with the existing wharf adjoining the market landing-stage at Winteringham Haven and situate on the lands numbered on the deposited plans 5 in the parish of Winteringham or with the access either by land or water to the said wharf unless and until they have provided for the use of the council and the public (subject only to the harbour dues hitherto charged) a new wharf adjoining the said haven affording equal accommodation to that afforded by the existing wharf and in a position to be reasonably approved of by the said council and having facilities of approach by land and water at least equal to those now enjoyed in connection with the existing wharf but such new wharf shall not be used except for

traffic to be carted to or from the same from or to any place reached by road in the rural district of Glanford Brigg or in the urban districts of Winterton or Roxby-cum-Risby : A.D. 1907.

- (2) If any difference shall arise between the North Lindsey Company and the council under this section the same shall unless otherwise agreed be determined by arbitration in manner provided by the Arbitration Act 1889.

32. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the North Lindsey Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give). Saving Crown rights.

33. For the protection of the commissioners for draining lands within the level of Ancholme in the county of Lincoln and making certain parts of the River Ancholme navigable (in this Act referred to as "the Ancholme Commissioners") the following provisions shall unless otherwise agreed apply and have effect :— For protection of Ancholme Commissioners.

- (1) Due notice of the intention of the North Lindsey Company to make application to the Board of Trade for the consent of that Board under the sections of this Act whereof the marginal notes are "Power to dredge" and "Works below high-water mark not to be commenced without consent of Board of Trade" to carrying out any dredging or work shall be forwarded by registered post to the clerk to the Ancholme Commissioners and the Board of Trade shall take into consideration any representation made on behalf of the Ancholme Commissioners and all the circumstances of the case before giving

A.D. 1907.

their consent to such dredging or work and shall if requested by either party hold an inquiry and shall make such conditions in relation thereto that they may think fit:

- (2) Nothing in this Act contained shall extend or be construed to extend to defeat lessen prejudice or alter impair take away or affect any of the rights powers or authorities vested in or enjoyed by the Ancholme Commissioners in the haven of the River Ancholme and the haven of the east drain at Ferriby Sluice.

For protection
of Trinity
House Dept-
ford Strond.

34. Nothing in this Act contained shall prejudice or affect the rights and privileges of the Corporation of Trinity House of Deptford Strond.

For protec-
tion of Hum-
ber Conser-
vancy Com-
missioners.

35. Notwithstanding anything contained in this Act or shown on the deposited plans the following provisions shall apply and have effect for the protection of the Commissioners (that is to say):—

- (1) Notwithstanding anything shown on the deposited plans and sections or in this Act contained or in any Act incorporated therewith the North Lindsey Company shall not acquire otherwise than by agreement any greater right or interest in the foreshore and bed of the River Humber northward of the line shown in red colour and marked A B on the plan signed in duplicate by the Right Honourable the Earl of Kintore the Chairman of the Select Committee of the House of Lords to whom the Bill for this Act was referred of which plan one copy has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Private Bill Office of the House of Commons than an easement or right of constructing and maintaining the works by this Act authorised which easement or right the commissioners and the Board of Trade are hereby empowered to grant The compensation for such easement or right shall be a rentcharge to be fixed (unless otherwise agreed with the commissioners with the approval of the Board of Trade) by arbitration under the provisions of the Lands Clauses Consolidation Act 1845 and such grant shall be subject in every respect to the Humber Conservancy Act 1868:

(2) The earthwork or solid masonry supports for Railways Nos. 1 and 1A and for any works constructed under the authority of the section of this Act whereof the marginal note is "Power to make subsidiary works" shall not extend northward of the said line and all works northward of the said line shall be supported on open pile work :

(3) If in consequence of erosion of adjacent lands such open pile work becomes an obstruction to the navigation of the River Humber the North Lindsey Company shall remove or alter such open pile work so as to obviate or mitigate such obstruction to such extent as the commissioners may reasonably require :

(4) Nothing in this Act contained shall in any way interfere with or prejudice the rights and powers of the commissioners to apply for and obtain the confirmation of a Provisional Order for the purpose of carrying out the river line shown on the Humber Conservancy plans in front of Winteringham Haven But in the event of any works being hereafter authorised to be constructed by the commissioners riverwards of the works authorised by this Act the North Lindsey Company shall be afforded by the commissioners reasonable access to the river frontage of such first mentioned works with such accommodation as will be equivalent to the North Lindsey Company's facilities provided under the powers of this Act so as to be accessible from the new river frontage and nothing in this section shall affect any rights of the North Lindsey Company as assignee of the Right Honourable Earl Carrington or his predecessors in title under the sections for his or their protection contained in the Humber Conservancy Acts :

(5) Before commencing the construction of any of the works by this Act authorised on the foreshore of the Humber plans sections and specifications showing the mode of construction thereof shall be furnished by the North Lindsey Company to the clerk of the commissioners and the approval of the commissioners to such plans sections and specifications or

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in case of difference the approval of the arbitrator to be appointed as hereinafter provided shall in each case be obtained by the North Lindsey Company before commencing the work and all such works shall be executed to the reasonable satisfaction of an engineer to be appointed by the commissioners :

- (6) All temporary structures in the Humber which may be necessary to enable the works by this Part of this Act authorised to be constructed shall be constructed so as not to interfere with the navigation of the Humber and to the reasonable satisfaction in all respects of an engineer to be appointed by the commissioners in accordance with plans to be submitted to and approved by the commissioners or in case of difference approved by an arbitrator to be appointed as hereinafter provided before the commencement of any such temporary structures and after the purpose for which such temporary structures were constructed has been accomplished the North Lindsey Company shall with all despatch or after fourteen days' notice in writing thereafter from the commissioners so to do remove any such temporary structures or any materials for the same which may have been placed in the Humber by the North Lindsey Company and on their failing so to do the commissioners may remove the same charging the North Lindsey Company with the expense of so doing and the North Lindsey Company shall forthwith repay to the commissioners all expenses so incurred :
- (7) The North Lindsey Company shall before commencing any dredging in the River Humber or of Winteringham Haven deliver to the commissioners plans and sections defining the nature extent and manner of such dredging and the North Lindsey Company shall not carry out such dredging otherwise than in accordance with such plans and sections and in such manner as may be approved by the commissioners or by the arbitrator to be appointed as hereinafter provided :
- (8) In the event of the commissioners omitting to express their disapproval of any plans sections or specifica-

tions within two months after the same shall have been furnished to the commissioners in pursuance of this section the commissioners shall be deemed to have approved the same: A.D. 1907.

(9) The North Lindsey Company shall allow at all times free access both by water and by land to the commissioners their officers and servants over the wharves or works as aforesaid without payment or hindrance whilst in the execution of their duties:

(10) In the event of any question or difference arising between the commissioners and the North Lindsey Company or the Company on their behalf under any of the foregoing provisions of this section such question or difference shall unless otherwise expressly provided for by this section be referred to an engineer to be appointed as arbitrator by the Board of Trade on the application of the North Lindsey Company or the commissioners:

(11) Nothing contained in this Act shall prejudice or alter or be deemed to prejudice or alter any of the provisions of the Humber Conservancy Acts 1852 to 1905 nor any of them or any title of the commissioners in to or over any lands or foreshore held or acquired by them under the said Acts or any of them or under any lease or agreement made under the powers thereof or confirmed thereby or any other of the rights powers privileges or authorities of the commissioners.

36.—(1) The North Lindsey Company shall not under the powers of this Part of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the North Lindsey Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals:

Works below high-water mark not to be commenced without consent of Board of Trade.

A.D. 1907.

(2) If any such work be commenced or completed contrary to the provisions of this Act the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the North Lindsey Company and the amount of such cost and charge shall be a debt due from the North Lindsey Company to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Board of
Trade.

37. If at any time the Board of Trade deem it expedient for the purposes of this Part of this Act to order a survey and examination of a work constructed by the North Lindsey Company on in over through or across tidal lands or tidal water or of the intended site of any such work the North Lindsey Company shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the North Lindsey Company to the Crown and shall be recoverable as a Crown debt or summarily.

Abatement
of work aban-
doned or de-
cayed.

38. If a work constructed by the North Lindsey Company under the powers of this Part of this Act on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade or the commissioners may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the North Lindsey Company and the amount of such expense shall be a debt due from the North Lindsey Company to the Crown or the commissioners as the case may be and be recoverable as a Crown debt or summarily.

Lights on
works dur-
ing construc-
tion.

39. The North Lindsey Company shall at or near the works below high-water mark authorised by this Part of this Act during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade require or approve. If the North Lindsey Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Lights after
completion
of works.

40. The North Lindsey Company shall at the outer extremity of their works below high-water mark authorised by this Part of this Act exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for

the prevention of danger to navigation as the Corporation of the Hull Trinity House shall from time to time direct. If the North Lindsey Company fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds. A.D. 1907.

41. In case of injury to or destruction or decay of the wharves or works or any part thereof the North Lindsey Company shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of the Hull Trinity House and shall apply to that corporation for directions as to the means to be taken and the North Lindsey Company shall be liable to a penalty not exceeding ten pounds for every calendar month during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken. Provision against danger to navigation.

42. The North Lindsey Company shall at all times keep at reasonable distances along the wharves and in accordance with any requirements which may be made by the Board of Trade a sufficient number of life-buoys and lines in good order and fit and ready for use. Life-buoys to be kept.

43. Every person who wilfully obstructs any person acting under the authority of the North Lindsey Company in setting out the line of the wharves or works connected therewith or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the line of the works shall for every such offence be liable to a penalty not exceeding five pounds. Penalty for obstructing works.

44. The limits within which the powers of the North Lindsey Company for the regulation of the wharves may be exercised shall comprise the wharves and the area below high-water mark lying within fifty yards of any part of the wharves. The jurisdiction of the North Lindsey Company conferred by this Act shall be limited to vessels going to moored at or departing from the wharves and shall not be exercised so as to affect vessels navigating or at anchor in the channels of the River Humber or in Winteringham Haven unless such vessels shall obstruct the approach or approaches to the wharf or wharves: Limits of wharves.

A.D. 1907.

Provided also that the jurisdiction of the Company shall not be exercised in such a manner as unreasonably to obstruct or interfere with any vessel approaching leaving or lying in front of any existing wharf in Winteringham Haven or any wharf provided in pursuance of the section of this Act whereof the marginal note is "For protection of rural district council of Glanford Brigg."

Tolls rates
and charges
on Railways
Nos. 1 and
1A.

45. The railways authorised by this Part of this Act shall for the purposes of tolls rates and charges be deemed to be part of the North Lindsey Company's undertaking.

Rates at
wharves on
persons &c.

46. The North Lindsey Company may demand and receive for every person who shall use or land from or embark on any vessel at the wharves and in respect of passengers' luggage and bicycles tricycles or other similar vehicles landed shipped or transhipped at the wharves and for the use of warehouses any sums not exceeding the several rates and sums respectively specified in the First Schedule to this Act.

Rates on
vessels.

47. The North Lindsey Company may subject to the provisions of this Act demand and take in respect of vessels using or frequenting the wharves any sums not exceeding the several rates and sums specified in the First Schedule to this Act and every such sum shall be paid by the master of the vessel and in the case of fishing boats steamers and other vessels trading to and from or frequently using the wharves the North Lindsey Company may agree to charge such annual or other sum as they may think reasonable by way of compounding for the rates or sums payable in respect of any such vessel but so that no preference be in any case given to any person.

Rates on
goods.

48. The North Lindsey Company may demand and take in respect of the shipment unshipment transshipment reception or delivery from at or upon the wharves of any of the goods and minerals included in each class in the classification so far as applicable of goods and minerals annexed to the schedule to the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order 1892 which Order is scheduled to and confirmed by the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order Confirmation Act 1892 any rates or charges not exceeding those respectively specified in the First Schedule to this Act

in respect of the class in which such goods and minerals are included and in respect of the shipment unshipment transshipment reception or delivery from at or upon the wharves of the animals or things described in Parts II. III. and IV. so far as applicable of the schedule to the said Order any rates or charges not exceeding those respectively specified in the First Schedule to this Act in respect of the description in such Part of such animals or things and every such rate shall be paid by the owner or consignee of such goods and minerals animals and things and sections 13 to 18 and 20 of the schedule to the said Order shall so far as applicable extend and apply to the fixing of the rates and charges by this section authorised and in the application adapted to the wharves authorised by this Act of the said Order and of the First Schedule to this Act the expression "the company" wherever used shall mean the North Lindsey Company.

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49. The North Lindsey Company may levy for and in respect of the use of cranes at the wharves and for weighing and for the use of machinery and barges the rates respectively specified in the First Schedule to this Act and all such rates shall be paid by the owners or persons in charge of the goods lifted or weighed or by the owner agent master or other person in charge of the vessels using the said cranes machinery or barges or requiring the services specified in the said schedule.

Rates for cranes &c.

50. All ballast to be discharged or removed from or put into any vessel using the wharves and all services relating to the stowing and trimming thereof shall if and when the North Lindsey Company so determine be discharged or removed or performed by the North Lindsey Company and the North Lindsey Company may fix such reasonable rates as they think proper not exceeding those mentioned in the First Schedule to this Act to be paid for the supply and removal of ballast from and into vessels and such ballast rates shall be payable by the master or owner of every vessel which discharges or loads any ballast at the wharves to the North Lindsey Company in respect of the vessels into or out of which such ballast is loaded or discharged and shall be recoverable by the North Lindsey Company as other rates in respect of vessels are by this Act recoverable and no persons other than the North Lindsey Company shall supply ballast to any vessel using the wharves unless with the permission of the North Lindsey Company.

Ballast rates.

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Supply of
water to
vessels.

51. The North Lindsey Company may supply water to vessels at the wharves and may charge for such supply any sum not exceeding that mentioned in the First Schedule to this Act.

Charges for
services.

52. The North Lindsey Company may demand and take for all services rendered by them in respect of the shipping transshipping and unshipping handling weighing watching and protecting animals and goods and for preparing and furnishing certificates of weight and for any other service with respect to animals goods minerals and things shipped transhipped unshipped warehoused or deposited by or with the North Lindsey Company for which rates or charges are not specifically fixed by this Act such sums as they think fit or as may be agreed upon between the North Lindsey Company and the person desiring to avail himself of such services and the North Lindsey Company may render any such services when they think proper Provided that such charges shall at all times be made equally to all persons in respect of the same or similar services and accommodations.

Appoint-
ment of
meters and
weighers.

53. The North Lindsey Company shall have the appointment of meters and weighers on and in connection with the wharves.

Provision for
towage &c.

54. The North Lindsey Company for the purposes of and in connection with the wharves may build purchase contract for or hire or license and maintain and use steamers tugs lighters and other ships and boats and may fix such rates or charges as may appear to them reasonable for or in respect of the use thereof and such rates or charges shall be paid by the owner agent master consignee or other person having charge of any vessel obtaining or demanding the assistance or use of any such steamers tugs or lighters or other ships or boats to the North Lindsey Company or the person with whom they may contract (as the case may be) and such rates and charges shall be due and payable whether such steamers tugs lighters or other ships or boats shall be actually employed or not provided the assistance or use thereof shall have been required and shall in consequence of such requisition have been tendered by the master or other person having the command of such steamer tug lighter or other ship or boat Provided always that nothing in this Act contained shall be deemed or construed to authorise the North

Lindsey Company to require any owner agent master consignee or other person having charge of any vessel lighter or river craft to employ hire or use any such steamer tug lighter or other ship or boat. A.D. 1907.

55. The North Lindsey Company may apply for the purposes of this Act which they are by this Act authorised to carry into execution and to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or mortgage or debenture stock and which may not be required for the purposes for which the same were authorised to be raised. Power to North Lindsey Company to apply funds to purposes of Act.

56. The North Lindsey Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole thirty thousand pounds by the issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the North Lindsey Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof. Power to North Lindsey Company to raise additional capital.

57. Except as by this Act otherwise provided the capital in new shares or stock created by the North Lindsey Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the North Lindsey Company of the same class or description and the new shares or stock were shares or stock in that capital. New shares or stock to be subject to same incidents as other shares or stock.

58. The capital in new shares or stock so created shall form part of the capital of the North Lindsey Company. New shares or stock to form part of capital of North Lindsey Company.

59. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the North Lindsey Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be. Dividends on new shares or stock.

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Restriction as to votes in respect of preferential shares or stock.

60. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

New and existing shares or stock may be of same class.

61. Subject to the provisions of the North Lindsey Orders and of this Act the North Lindsey Company may if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by the North Lindsey Orders and this Act respectively authorised to raise by the creation and issue of new shares or stock.

Power to borrow.

62. The North Lindsey Company may in respect of the additional capital of thirty thousand pounds which they are by this Act authorised to raise borrow on mortgage of their undertaking any moneys not exceeding in the whole ten thousand pounds and of that sum they may borrow one thousand pounds in respect of each three thousand pounds of the said additional capital but no part thereof shall be borrowed until shares for so much of the said additional capital as is to be raised by means of shares are issued and accepted and one third of such capital is paid up and the North Lindsey Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such capital have been issued and accepted and that one third of such capital has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one third of so much of the said additional capital as is to be raised by means of stock is fully paid up and the North Lindsey Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the North Lindsey Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

PART IV.

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NEW WORKS AND ADDITIONAL LANDS FOR WEST RIDING
AND GRIMSBY RAILWAYS.

63. Subject to the provisions of this Act the Company and the Great Northern Railway Company (in this Part of this Act jointly referred to as "the Two Companies") may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railways hereinafter described with all proper stations sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes or for the general purposes of their West Riding and Grimsby Railway undertaking The railways hereinbefore referred to and authorised by this Part of this Act are—

Power to
Company
and Great
Northern
Railway
Company
to make new
railways.

In the county of York (West Riding) rural district of
Doncaster—

A Railway (No. 4) 1 mile 7 furlongs 5·08 chains or thereabouts in length commencing in the township or parish of Brodsworth-cum-Pigburn and Scausby at a point in the field numbered 127 on the $\frac{1}{2500}$ Ordnance map of Yorkshire second edition 1906 sheet CCLXXVI. 7 about two chains measured in a westerly direction from the centre of the road or lane known as Roman Ridge at the point where that lane crosses over the Underhills drain and terminating in the township or parish of Adwick-le-Street on the south-west side of the main line of the West Riding and Grimsby Railway of the Two Companies at a point about sixteen yards from the centre of the said railway measured from a point thereon about twenty-nine chains north-west of the centre of the Castle Hills signal box:

A Railway (No. 5) 5·30 chains or thereabouts in length wholly in the said township or parish of Adwick-le-Street commencing by a junction with Railway No. 4 at a point on the south-west side of and sixteen yards from the centre of the said West Riding and Grimsby Railway measured from a point

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thereon about six chains north-west of the centre of the said signal box and terminating by a junction with the down line of the said railway at a point thereon about eleven chains north-west of the said Castle Hills signal box :

A Railway (No. 6) 7·50 chains or thereabouts in length wholly in the said township or parish of Adwick-le-Street commencing by a junction with Railway No. 4 at the point above described as the commencement of Railway No. 5 and terminating by a junction with the up line of the said West Riding and Grimsby Railway at a point thereon about one and a half chains south-east of the said Castle Hills signal box :

A Railway (No. 7) 4 furlongs 5·32 chains or thereabouts in length commencing in the said township or parish of Adwick-le-Street by a junction with the main line of the said West Riding and Grimsby Railway at a point thereon about twelve and a half chains north-west of the centre of the signal box at Carcroft and Adwick-le-Street Station and terminating in the township or parish of Skellow by a junction with the Barnby Dun Branch of the said West Riding and Grimsby Railway at a point thereon about three chains west of the centre of the level crossing of that railway by the public road leading from Adwick-le-Street to Carcroft.

In the county of York (West Riding) rural districts of Doncaster and Hemsworth—

A Railway (No. 8) 4 furlongs 5·60 chains or thereabouts in length commencing in the township or parish of Hamphall Stubbs by a junction with the said West Riding and Grimsby Railway at a point thereon about forty chains measured in a westerly direction along the said railway from the centre of the bridge carrying the public road leading from Hampole to Hamphall Stubbs and Skelbrooke and known as Hazel Lane over the said railway and terminating in the township or parish of South Elmsall by a junction with the South Yorkshire Extension Railway of the Hull and Barnsley Railway Company at a point thereon about thirty-four chains

measured in a north-easterly direction from the centre of the bridge carrying the said South Yorkshire Extension Railway over the said West Riding and Grimsby Railway. A.D. 1907.

64. For the protection of the county council of the west riding of the county of York (in this section called "the county council") the following provisions shall have effect in the execution of the works by this Act authorised unless otherwise agreed on in writing between the county council and the Two Companies (that is to say):—

For protection of West Riding County Council.

- (1) The bridge for carrying the Doncaster and Tadcaster main road in the parish of Adwick-le-Street over Railway No. 4 by this Act authorised shall be of a width not less than the existing width of that portion of the said road (between the fences thereof) which will be carried by the said bridge and the parapets of such bridge at both ends thereof shall be in line with the fences of the said road at both ends thereof:
- (2) Any alteration of the level of the said main road for the purpose of the said railway shall be so made that the altered portions shall not in any part thereof have a steeper gradient than one in fifty and the Two Companies shall to the reasonable satisfaction of the surveyor of the county council make proper provision for the drainage of the said main road where so altered:
- (3) The Two Companies shall maintain on the said road for such distance (not exceeding thirty yards) beyond the parapets at each end of the said bridge as the county council may reasonably require substantial close screens of not less height than five feet six inches and the said parapets and screens shall not be used for the posting of bills or placards for advertising purposes on the sides facing the said main road and the said screens shall be constructed in such manner as the county council shall reasonably approve:
- (4) The Two Companies shall not commence to construct any works which will interfere with the said main road nor to construct any temporary or substituted

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road in accordance with the provisions of the Railways Clauses Consolidation Act 1845 until they have given to the surveyor of the county council not less than twenty-eight days' notice in writing of their intention so to commence such works accompanied by plans sections and specifications showing the nature of the said works and the position width and mode of formation of any such temporary or substituted road nor until plans sections and specifications as aforesaid have been approved by the said surveyor or in case of difference between him and the Two Companies by an arbitrator to be appointed as hereinafter provided Provided always that if the said surveyor does not within twenty-eight days after service of any notice plans sections and specifications signify in writing his approval or disapproval thereof or other his directions in relation thereto he shall be deemed to have approved the same And the Two Companies shall comply with all reasonable directions and requirements of the county council in relation to the said roads and the mode of execution of the said works :

- (5) Any such temporary or substituted road as aforesaid shall be properly drained and kept in repair by the Two Companies to the satisfaction of the surveyor of the county council :
- (6) The provision of the section of this Act the marginal note whereof is " Company not liable to repair surface of road level of which is not permanently altered " shall not apply to the said main road but the Two Companies shall not be liable to make up or maintain the said road to a width greater than the width of that portion of the existing road which is made up :
- (7) If any difference arise between the Two Companies and the county council as to the true intent and meaning of any of the provisions of this Act or anything to be done or not to be done thereunder such difference shall be settled by an engineer to be agreed upon and failing agreement to be appointed by the Board of Trade on the application of either of the parties in difference after notice to the other.

65. The following provisions for the protection of the Doncaster Rural District Council (hereinafter called "the council") shall unless otherwise agreed between the Two Companies and the council in writing apply and have effect in the exercise of the powers of this Act (that is to say):—

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For protec-
tion of Don-
caster Rural
District
Council.

- (1) Notwithstanding anything contained in this Act or shown upon the deposited plans the road known as Roman Ridge and numbered on the deposited plans 3 in the parish of Brodsworth and 1 in the parish of Adwick-le-Street shall be carried over Railway No. 4 by a bridge having a width of not less than twenty-five feet between the parapets thereof measured at right angles to such parapets:
- (2) The approaches to such bridge shall have a gradient not steeper than one in twenty-five:
- (3) The said bridge and approaches shall be constructed according to plans and sections to be previously submitted to and reasonably approved by the council or in case of difference between them and the Two Companies by an arbitrator to be appointed as hereinafter provided:
- (4) The roadway over the said bridge and approaches shall be maintained by and at the expense of the council:
- (5) If any difference shall arise between the Two Companies and the council as to anything to be done or not to be done under this section such difference shall be referred to an engineer to be appointed unless otherwise agreed by the President of the Institution of Civil Engineers upon the application of either party after notice to the other.

66. For the protection of the Hull and Barnsley Railway Company (in this section called "the Hull Company") the following provisions shall unless otherwise agreed between the Two Companies and the Hull Company have effect (that is to say):—

For protec-
tion of Hull
and Barnsley
Railway
Company.

- (1) The junction of the Railway (No. 8) at South Elmsall with the railway of the Hull Company shall be made at such point within the limits of deviation shown upon the deposited plans and in such manner as shall be reasonably approved by the engineer of the Hull Company and the junction and signalling

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works in connection therewith so far as they affect the running lines of the Hull Company shall be constructed and maintained by the Hull Company at the expense and to the reasonable satisfaction of the Two Companies:

- (2) With respect to any land of the Hull Company which the Two Companies are by this Act authorised to enter upon take or interfere with the Two Companies shall not purchase or take the same but the Two Companies may purchase and take and the Hull Company shall sell and grant accordingly an easement or right of using so much of the said land as shall be necessary for constructing maintaining and using the works by this Act authorised and except as aforesaid the Two Companies shall not under the powers of this Act enter upon take or use any lands works or property of the Hull Company or acquire any right in over or under the same without the consent in writing of the Hull Company:
- (3) If at any time hereafter the Hull Company shall be desirous of using lands now belonging to them for the purpose of extending widening or altering their railways or works the Two Companies shall give to the Hull Company all proper and reasonable facilities for that purpose:
- (4) The Two Companies and their contractors agents servants or workmen shall not during the construction or in the subsequent maintenance or user of the works by this Act authorised unnecessarily obstruct or in any way interfere with the free uninterrupted and safe use of the railways of the Hull Company or any traffic thereon respectively:
- (5) If in the opinion of the Hull Company or (in the case of difference between them and the Two Companies) in the opinion of an arbitrator to be appointed as hereinafter provided it shall be necessary for the Hull Company to purchase or pay compensation for any minerals to be left unworked then—
 - (A) If the same have to be left unworked solely for the protection and safety of any works constructed under the powers of this Act the Two Companies shall on demand pay to the Hull

Company all costs and expenses incurred by them in relation to any such purchase or payment of compensation ; or

(B) If the same have to be left unworked for the protection and safety of the railway works or property of the Hull Company as well as of the said works to be constructed under the powers of this Act the Two Companies shall on demand pay to the Hull Company a fair proportion of the costs and expenses incurred by them in relation to any such purchase or payment of compensation and the proportion of such costs and expenses payable by the Two Companies shall in case of difference be determined by arbitration as hereinafter provided :

- (6) If in the construction or maintenance of any works authorised by this Act or by reason of any failure thereof or any act or omission of the Two Companies or their contractors or any servants or workmen employed by them respectively the railway of the Hull Company be injured or any accident interruption or interference shall be occasioned to the traffic thereon the Two Companies shall pay to the Hull Company all costs charges damages and expenses which they may thereby be put to or incur :
- (7) The Hull Company may at their own expense at any time or times hereafter alter or remove the said junction with their railway and substitute a new junction therefor but so that such alteration or removal or substituted junction as the case may be shall be equally as convenient as the existing junction and shall not stop or unnecessarily interfere with the traffic of the said Railway No. 8 by this Act authorised or cause increased expense to the Two Companies in the working or maintenance of the substituted junction or the signal works or other conveniences connected therewith :
- (8) Any dispute arising under the provisions of this section between the Two Companies and the Hull Company shall be referred to an arbitrator to be agreed upon between the parties or failing such agreement to be appointed on the application of either party by the Board of Trade.

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Tolls rates
and charges
on Railways
Nos. 4 to 8.

67. The railways authorised by this Part of this Act and the works connected therewith executed under the powers of this Act shall for the purposes of tolls rates and charges and all other purposes whatsoever form part of the West Riding and Grimsby Railway of the Two Companies.

Additional
lands for
West Riding
and Grimsby
Railway.

68. Subject to the provisions of this Act and in addition to the other lands which the Two Companies are by this Part of this Act authorised to acquire the Two Companies may enter upon take use and appropriate for the general purposes of their West Riding and Grimsby Railway undertaking and works connected therewith and for providing increased accommodation all or any of the lands following delineated on the deposited plans and described in the deposited books of reference relating thereto and may hold for all the purposes of their said undertaking such of those lands as have already been purchased and the same shall be deemed to be lands acquired under the powers of this Act (that is to say) :—

In the county of York (West Riding) rural district of
Doncaster—

A strip of land in the said township or parish of Adwick-le-Street of the width of one chain or thereabouts adjoining the said main line of the West Riding and Grimsby Railway on the south-western side thereof and extending from a point on the boundary of that railway about one and a half chains south-east of the said Castle Hills signal box for a distance of about twenty-three chains measured in a south-easterly direction.

Penalty im-
posed unless
Railways
Nos. 4 to 8
opened
within time
limited.

69. If the Two Companies fail within the period limited by this Act to complete the railways authorised by this Part of this Act the Two Companies shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railways in the completion of which default is made are completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of such railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854 and every sum of

money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided but no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Two Companies were prevented from completing or opening any railway authorised by this Part of this Act by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

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70. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any land-owners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the said railways authorised by this Part of this Act or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Two Companies by this Act for the purposes of the said railways and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit and if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Two Companies are insolvent or the said railway or railways in respect of which the penalty has been incurred or any part thereof have been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Two Companies for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Two Companies.

Application
of penalty.

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Powers of this Part of Act may be exercised by either Company.

71. The powers by this Part of this Act conferred upon the Two Companies may if so agreed between the Two Companies be exercised by either of them and in the event of any such powers being exercised by one of the Two Companies the provisions of this Act shall be read and construed with reference to the powers so exercised as if the Company exercising the same has been mentioned therein instead of the Two Companies.

Power to Great Northern Railway Company to apply funds to purposes of Act.

72. The Great Northern Railway Company with respect to the powers conferred by this Act upon that company jointly with the Company may apply to the purposes of this Act being purposes to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Acts relating to them and which may not be required for the purposes to which they are by any such Acts made specially applicable.

PART V.

GENERAL PROVISIONS APPLICABLE TO THE TAKING OF LANDS AND CONSTRUCTION OF WORKS.

Application of this Part of Act and further interpretation.

73. This Part of this Act shall so far as applicable apply in the taking of lands and execution of works under the powers of this Act to the several companies upon whom powers for those purposes are conferred by this Act And in this Part of this Act the expression "the Company" wherever used means—

In relation to the Part of this Act entitled "New works
" and additional lands for Great Central Railway under-
" taking" the Company;

In relation to the Part of this Act entitled "As to new
" railways &c. in Lincolnshire" the North Lindsey
Company ;

In relation to the Part of this Act entitled "New works
" and additional lands for West Riding and Grimsby
" Railways" the Company and the Great Northern
Railway Company.

Land for extraordinary purposes.

74. The quantity of land to be taken by the Company by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation Act 1845 shall not exceed five

acres but nothing in that Act or in this Act shall exempt the Company from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so taken. A.D. 1907.

75. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

76. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

77.—(1) All private rights of way over any lands which shall be acquired under the powers of this Act for the compulsory purchase of lands shall as from the date of the acquisition of such lands be extinguished. As to private rights of way.

(2) The Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

78. And whereas in the construction of the railways and works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— Owners may be required to sell parts only of certain lands and buildings.

(1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Fourth Schedule to this Act and whereof a portion only is required for the purposes of the

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Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:

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(5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given hereunder to sell and convey any premises.

79. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and

For protection of gas and water mains of

A.D. 1907. apparatus of any local authority and shall be construed as if
local authorities. "local authority" were mentioned in those sections in addition
to "company or society" Provided that any penalties recovered
under section 23 shall be appropriated to that fund of the local
authority to which their revenues in respect of water or gas
(as the case may be) are appropriated.

Under-
pinning of
houses.

80. And whereas in order to avoid in the construction
and maintenance of any works authorised by this Act injury
to the houses and buildings within one hundred feet of the
railways and works authorised by this Act it may be necessary
to underpin or otherwise strengthen the same Therefore the
Company at their own costs and charges may and if required
by the owners or lessees of any such house or building shall
subject as hereinafter provided underpin or otherwise strengthen
the same and the following provisions shall have effect (that
is to say) :—

- (1) At least ten days' notice shall unless in case of
emergency be given to the owners lessees and
occupiers or by the owners or lessees of the house
or building so intended or so required to be under-
pinned or otherwise strengthened :
- (2) Each such notice if given by the Company shall be
served in manner prescribed by section 19 of the
Lands Clauses Consolidation Act 1845 and if given
by the owners or lessees of the premises to be
underpinned or strengthened shall be sent to the
principal office of the Company :
- (3) If any owner lessee or occupier of any such house or
building or the Company as the case may require
shall within seven days after the giving of such
notice give a counter notice in writing that he or
they as the case may be disputes the necessity of
such underpinning or strengthening the question of
the necessity shall be referred to the arbitration
of an engineer to be agreed upon or in case of
difference appointed at the instance of either party
by the Board of Trade :
- (4) The arbitrator shall forthwith upon the application
of either party proceed to inspect such house or
building and determine the matter referred to him
and in the event of his deciding that such under-
pinning or strengthening is necessary he may and

if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Company may and shall proceed forthwith so to underpin or strengthen the said house or building:

- (5) The Company shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against further injury arising from the execution or use of the works of the Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

81. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not except as by this Act otherwise expressly provided be liable to maintain the surface of any road or public highway

Company not liable to repair surface of road level of which is

A.D. 1907. which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered so as to increase the gradient of any part thereof.

Period for completion of railways. **82.** If the railways by this Act authorised be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

PART VI.

REVIVAL OF POWERS AND EXTENSIONS OF TIME.

Revival of powers and extension of time for compulsory purchase of lands and for completion of works authorised by North Lindsey Order 1900. **83.** The powers granted by the North Lindsey Order 1900 and extended by the North Lindsey Order 1905 for the compulsory purchase of lands required for the railways and portions of railway hereinafter specified authorised by and described in section 10 of the North Lindsey Order 1900 are hereby revived (that is to say) :—

(A) So much of Railway No. 1 as lies between the point marked and measured on the deposited plans of the said Railway No. 1 one mile five furlongs and the point marked and measured on the said plans three miles three furlongs :

(B) So much of Railway No. 1 as lies between a point on the southern side of Marsh Lane in the parish of Winteringham marked and measured on the deviation plan referred to in the said Order one mile one furlong two chains and the termination of the said Railway No. 1 :

(C) Railway No. 2 :

(D) Railways Nos. 3 and 3A :

And the powers as so revived and the powers for the construction of the said portions of Railway No. 1 and of Railways Nos. 2 3 and 3A are hereby extended until the expiration of three years from the passing of this Act.

Extension of time for completion of railways and **84.** The time limited by section 57 of the Act of 1905 for the completion of the Railways Nos. 2 to 8 and the new road authorised by and described in section 5 of the Act of 1901

and the time limited by the said section 57 for the abandonment of the portion of the Great Coates Branch Railway authorised and required to be abandoned by sections 7 and 10 of the Act of 1901 are hereby extended for a period of two years from the twenty-sixth day of July one thousand nine hundred and seven and at the expiration of that period the powers for the completion of the said railways and road shall cease except as to so much thereof as is then completed:

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road authorised by Act of 1901 and for abandonment of existing railway.

Provided always that nothing herein contained shall prejudice or affect the rights and interests of Sir Walter Gilbey Baronet or other the owner for the time being of the lands referred to in the said section 7 of the Act of 1901 or of the Company either under that section or under any existing agreement between the Company and the said Sir Walter Gilbey with respect to the subject matter of that section.

85. The powers granted to the Company by the Act of 1903 for the compulsory purchase of lands required for Railway No. 1 described in and authorised by section 5 of the Act of 1903 are hereby revived and those powers as so revived may be exercised for a period of two years from the passing of this Act and the time limited by section 24 of the Act of 1903 for the completion of the said railways is hereby extended for a period of two years from the passing of this Act and at the expiration of the said period the said powers shall cease.

Revival of powers and extension of time for compulsory purchase of lands required for Doncaster railways authorised by Act of 1903.

86. The time limited by the Act of 1904 for the compulsory purchase of lands required for the diversion of the public highway in the parish of Sprotborough described in and authorised by section 20 of the Act of 1904 and for the compulsory purchase of the additional lands in the county of York (West Riding) described in and authorised to be taken under section 28 of the Act of 1904 is hereby extended for a period of two years from the twenty-second day of July one thousand nine hundred and seven and at the expiration of that period those powers shall cease.

Extension of time for compulsory purchase of lands authorised by Act of 1904.

87.—(1) The powers granted to the Seaforth and Sefton Junction Railway Company by the Seaforth and Sefton Junction Railway Act 1903 for the compulsory purchase of lands required for the railways authorised by and described in section 5 of that Act except in so far as the said railways were abandoned

Revival of powers and extension of time for compulsory purchase of lands and for

A.D. 1907. by section 42 of the Act of 1904 are hereby revived and those powers as so revived may be exercised for a period of two years from the twenty-second day of July one thousand nine hundred and seven and at the expiration of that period those powers shall cease.

construction of works for Seaforth and Sefton Junction Railway.

(2) The time limited by section 78 of the Act of 1904 for the compulsory purchase of lands required for the railways authorised by section 40 of the Act of 1904 is hereby extended for a period of two years from the twenty-second day of July one thousand nine hundred and seven and at the expiration of that period those powers shall cease.

(3) The time limited by the said Seaforth and Sefton Junction Railway Act 1903 for the completion of the railways authorised by that Act except in so far as the said railways were abandoned by section 42 of the Act of 1904 is hereby extended for a period of two years from the twenty-second day of July one thousand nine hundred and seven and at the expiration of that period those powers shall cease.

Extending time for sale of certain superfluous lands of Manchester South Junction and Altrincham Company.

88. Notwithstanding anything in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Manchester South Junction and Altrincham Company with which that Act is incorporated the period for and within which the Manchester South Junction and Altrincham Company may hold sell and dispose of any superfluous lands which are not situate near to or adjoining any railway or station connected with their railway and which have not yet been applied to the purposes for which they were acquired is hereby extended for a period of three years from the passing of this Act but the Manchester South Junction and Altrincham Company shall at the expiration of that period sell and absolutely dispose of as superfluous lands all such parts of those lands as shall not then have been applied to or are not then required for the purposes of their undertaking.

Saving of rights where powers are revived.

89. Where by this Act the powers for the compulsory purchase of any lands are revived the provisions contained in the Act or Order by which the said powers were originally granted and in any subsequent Act or Order for the protection and benefit of any local authority company or person shall continue to be in force as if the period for the exercise of such compulsory powers had not expired.

PART VII.

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CAPITAL.

90. The Company may apply to the purposes of this Act which they are authorised to carry into execution and to which capital is properly applicable any moneys which they now have in their hands or which they have power to raise by shares or mortgage or debenture stock and which may not be required for the purposes for which the same were respectively authorised to be raised.

Power to Company to apply funds to purposes of Act.

91. From and after the passing of this Act the amount of three and a half per centum second debenture stock which the Company are by the recited Acts authorised to create and issue shall be increased by the addition thereto of five hundred thousand pounds and the moneys arising from the creation and issue of such additional second debenture stock shall be applied to the following purposes being in each case purposes to which capital is properly applicable (that is to say):—

Company may issue additional second debenture stock.

- (1) For the purposes of the Part of this Act entitled
“New works and additional lands for Great Central
“ Railway undertaking”;
- (2) For the purpose of making the subscription authorised
by this Act to the undertaking of the North Lindsey
Company;
- (3) For the purposes of the Grimsby District Light Railways
Order 1906:

And the second debenture stock created and issued by the Company in pursuance of this section shall rank *pari passu* with all second debenture stock of the Company created and issued or to be created and issued under the authority of the said recited Acts and shall be deemed for all purposes to have been authorised by the Great Central Railway Act 1900.

92. The Company may with the authority of three fourths of the votes of their shareholders present in person or by proxy at a general meeting of the Company specially convened with notice of the object subscribe such moneys as they may think fit towards the undertaking of the North Lindsey Company not exceeding in the whole one hundred and thirty thousand pounds and the Company may with the like authority contribute and apply in or towards payment of their said subscription any moneys which they are already authorised to

Power to Company to subscribe to undertaking of North Lindsey Company.

A.D. 1907. raise and which may not be required by them for the purposes of their undertaking and the Company shall in respect of the sums to be subscribed and the corresponding shares in the North Lindsey Company to be held by them have all the powers rights and privileges (except in regard to voting at general meetings which shall be as hereinafter provided) and be subject to all the obligations and liabilities of proprietors of shares in the North Lindsey Company Provided always that the Company shall not sell dispose of or transfer any of the shares in the North Lindsey Company for which they may subscribe.

Votes of
Company at
general
meetings of
North Lind-
sey Com-
pany.

93. The Company whilst shareholders of the North Lindsey Company may by writing under their common seal from time to time appoint some person to attend any meeting of the North Lindsey Company and such person shall have all the privileges and powers attaching to a shareholder of the Company at such meetings and may vote thereat in respect of the capital held by the Company.

Company
may appoint
directors of
North Lind-
sey Com-
pany.

94.—(1) The Company may from time to time nominate three of their directors or one of their directors and two other persons to be directors of the North Lindsey Company in respect of their subscription or guarantee or some part thereof to the undertaking of the North Lindsey Company Every such nomination shall be made in writing under the seal of the Company and shall be deposited with the secretary of the North Lindsey Company and may in like manner be revoked and renewed.

(2) The director so nominated shall be in addition to the number of directors elected by the shareholders of the North Lindsey Company.

(3) Every director so nominated by the Company shall enter upon office immediately upon his appointment and shall remain in office until his appointment be revoked or until he die or resign and need not be a shareholder in the North Lindsey Company.

Power to
Company to
hold pension
fund on loan
in addition to
other statu-
tory borrow-
ing powers.

95. Whereas by the Great Central Railway (Pension Fund) Act 1905 the trustees of the pension fund thereby established were authorised to invest on loan to the Company moneys belonging to the said fund Be it enacted that the Company is hereby authorised to receive such loans in addition to such other moneys as they shall from time to time be authorised to borrow.

96. No interest or dividend shall be paid out of any share or loan capital which any company are by this Act authorised to raise to any shareholder on the amount of any calls made in respect of the shares held by him but nothing in this Act shall prevent such company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

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Interest on calls not to be paid out of capital.

97. No company shall out of any money by this Act authorised to be raised pay or deposit any sum which by any Standing Order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising such company to construct any other railway or to execute any other work or undertaking.

Deposits for future Bills not to be paid out of capital.

PART VIII.

GREAT WESTERN AND GREAT CENTRAL JOINT RAILWAYS.

98. In this Part of this Act—

The expression “the Great Western Company” means the Great Western Railway Company;

The expression “the Two Companies” means the Company and the Great Western Company;

The expression “the Joint Committee” means the Great Western and Great Central Railways Joint Committee;

The expression “the Act of 1899” means the Great Western and Great Central Railway Companies Act 1899;

The expression “the joint undertaking” means the undertaking vested in the Joint Committee by the Act of 1899 as amended by this Act and more particularly described in the Fifth Schedule to this Act.

Further interpretation.

99.—(1) As on and from the first day of July one thousand nine hundred and seven all rights and powers of the Great Western Company in or over the portion of railway in this section described and the lands stations and buildings thereof shall in consideration of the payment by the Joint Committee to the Great Western Company of the sum of eighty-two thousand pounds be by virtue of this Act transferred to and vested

Transfer of Aylesbury and Princes Risborough Railway to Joint Committee.

A.D. 1907. in the Joint Committee as part of the joint undertaking but subject to any contracts obligations or liabilities of the Great Western Company in respect of the said portion of railway.

(2) The portion of railway in this section referred to is—

(A) The Great Western Railway between Princes Risborough and the junction near Aylesbury with the railways forming part of the Aylesbury joint station ; and

(B) The Great Western Company's interest in the Aylesbury joint station railways situated between Aylesbury North Junction and Aylesbury South Junction and between Aylesbury Station and the junction with the Great Western Railway next hereinbefore mentioned.

Joint Committee to grant lease of joint railways.

100. The Joint Committee shall grant and the Two Companies shall take a lease for a term of not less than two hundred years of the joint railways to the Two Companies as joint tenants in consideration of a yearly rent payable by equal instalments half yearly of eighty-seven thousand five hundred pounds being equal to interest at the rate of three pounds ten shillings per centum per annum upon the sum of two million five hundred thousand pounds sterling The said rent shall form and be a first charge upon the net revenues from time to time accruing in respect of the said joint undertaking and the Two Companies shall jointly and severally and as between themselves in equal moieties be bound to make good as part of the working expenses of their respective undertakings any deficiency which may arise in any half year in the revenues available for the payment of the said rent.

Power to Joint Committee to create stock.

101. With a view to restoring to the general capital funds of the Two Companies the moneys expended by them as aforesaid for the purposes of the joint railways the Joint Committee shall create and issue a stock to be called "Great Western and Great Central guaranteed stock" to an amount not exceeding two million five hundred thousand pounds bearing interest at the rate of three pounds ten shillings per centum per annum upon the security of the guaranteed rent payable to them as aforesaid by the Two Companies as the consideration for the said lease and the said rent shall be applied by the Joint Committee in discharging and paying such interest accordingly Such stock may be issued as a whole or in instalments.

102.—(1) The sums of money from time to time coming into the hands of the Joint Committee by virtue of the creation and issue of the said stock shall so far as shall be required for the purpose be applied and paid to the Great Western Company in recoupment of the amounts of capital which have been provided by them for the purposes of the joint undertaking and upon such payment being made the Company shall be deemed to have repaid to the Great Western Company in pursuance of section 35 of the Act of 1899 to the amount of one half of such payments the capital expended by the Great Western Company upon the joint undertaking.

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Proceeds of stock to be applied in recoupment of Great Western Company.

(2) Notwithstanding such repayment the Company shall during a period of twenty years from the passing of this Act carry not less than one half of its traffic sent through Helmdon destined for London and vice versâ by way of the joint undertaking viâ Ashendon and Northolt or shall account for the same as if so sent and the Great Western Company shall on the completion and opening of Railway No. 1 authorised by the Great Western Railway (New Railways) Act 1905 and during the same period send over the joint undertaking viâ Ashendon and Northolt or account for as if so sent one half of the traffic sent through King's Sutton to London and vice versâ.

Company and Great Western Company to send traffic by way of joint undertaking.

(3) The balance of the said sums so coming into the hands of the Joint Committee and of the rent paid by the Two Companies to the Joint Committee which may not be required for the payment of the interest or dividend on the said stock shall unless the Great Western Company and the Company otherwise agree be paid over by the Joint Committee in equal proportions to those companies respectively.

Balance of proceeds of stock to be paid to Two Companies.

(4) Until the Great Western Company have been repaid by the Joint Committee the capital which they have provided for the purposes of the joint undertaking and the sum of eighty-two thousand pounds the cost of the construction of the portion of railway between Princes Risborough and Aylesbury and the Great Western Company's expenditure at the Aylesbury joint station the Company shall pay to the Great Western Company a sum representing four per centum per annum on one half of so much of the said capital of one million seven hundred and eighty-eight thousand six hundred and thirty pounds and of the said sum of eighty-two thousand pounds which for the time being may remain unpaid and of any further capital

Interest to be paid to Great Western Company pending repayment of capital.

A.D. 1907. — provided by them for the said purposes subsequently to the thirty-first day of December one thousand nine hundred and six.

In the event of the growth of the traffic on the joint undertaking making it necessary that further accommodation should be provided on the joint undertaking the cost of the same shall be defrayed by the Company and the Great Western Company in equal shares. If any difference shall arise between the Company and the Great Western Company as to the necessity for such additional accommodation the same shall be settled by arbitration in accordance with the provisions of the Railway Companies Arbitration Act 1859.

Application
of capital by
Two Com-
panies.

103. The Two Companies shall apply their respective portions of the money raised by virtue of the creation and issue of the said stock payable to them under the last preceding section of this Act to the general purposes of their respective undertakings to which capital is applicable.

Through
bookings to
Metropolitan
stations.

104. Notwithstanding the transfer and vesting in the Joint Committee of the portion of railway between Princes Risborough and Aylesbury and the interest of the Great Western Company in the Aylesbury joint station railways or anything in this Act contained the Great Western Company shall be entitled to all through bookings and other facilities for traffic passing between stations on the railway of the Metropolitan Railway Company and stations on the railways of the Great Western Company or beyond as they would have been entitled to before the passing of the Metropolitan and Great Central Railway Companies Act 1905.

For pro-
tection of
Metropolitan
Railway
Company
and Metro-
politan and
Great Cen-
tral Joint
Committee.

105. Nothing in this Act contained shall confer upon the Great Western Company (except as to the vesting in the Joint Committee) or upon the Joint Committee (except as to the granting of the lease to the Two Companies) or upon the Two Companies any greater rights or powers with regard to the Aylesbury joint station than the Great Western Company are entitled to under the agreement dated the sixth day of December one thousand eight hundred and sixty-six and made between the Wycombe Railway Company and the Aylesbury and Buckingham Railway Company and the Metropolitan and Great Central Joint Committee shall be entitled to require payment from the Joint Committee and from the Two Companies of such sums in respect of the user of the said joint station as

they would have been entitled to receive from the Great Western Company or the Company if this Act had not been passed. Provided always that save as aforesaid nothing in this Act contained shall alter prejudice or affect the said agreement of the sixth day of December one thousand eight hundred and sixty-six. A.D. 1907.

106. Notwithstanding anything to the contrary contained in section 19 of the Great Western Railway (New Railways) Act 1905 the cost of maintaining and working the junction at Ashendon of Railway No. 1 by that Act authorised with the railway of the Joint Committee shall be borne by the Company and the Great Western Company in equal shares. Provision as to junction at Ashendon.

107.—(1) As on and from the passing of this Act the portion of the railway of the Great Western and Great Central Railways Joint Committee in this section described and all rights and powers of the said Joint Committee with respect thereto shall be by virtue of this Act transferred to and vested in the Company alone as part of their undertaking free from any rights or powers of the said Joint Committee or the Great Western Railway Company in or over the said portion of railway but subject in relation to any other person to any contracts obligations or liabilities of the said Joint Committee in respect of the said portion of railway and the Company may work and manage the said portion of railway as part of their undertaking and subject as between the said Joint Committee the Great Western Railway Company and the Company to the terms and conditions of any agreement which has been or may be entered into between them in respect of such transfer and vesting. Transfer to Company of portion of Great Western and Great Central Joint Railways.

(2) The portion of railway in this section referred to vested in the Company by virtue of this section is—

So much of the railway of the Great Western and Great Central Railways Joint Committee as lies between the junction thereof with the extension to London of the Great Central Railway at Grendon Underwood and the junction of the said railway of the said Joint Committee with Railway No. 1 authorised by the Great Western (New Railways) Act 1905 at Ashendon. The said junction being more particularly shown on a plan signed in duplicate by the Right Honourable the Earl of Kintore the Chairman of the Select Committee of

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the House of Lords to whom the Bill for this Act was referred one copy of which plan has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Private Bill Office of the House of Commons.

(3) After the passing of this Act the Company shall calculate the maximum rates and charges for merchandise traffic (including perishable merchandise by passenger train) chargeable in respect of the said portion of railway as if the said portion of railway had formed part of the undertaking of the Company at the date of the passing of the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order Confirmation Act 1892 and the schedule of maximum rates and charges confirmed by the said Act shall be applicable to the said portion of railway :

Provided always that as respects passenger traffic and parcels other than perishable merchandise by passenger train the fares rates and charges to be demanded and recovered in respect thereof shall not exceed the fares rates and charges prescribed by the Manchester Sheffield and Lincolnshire Railway Act 1849.

PART IX.

MISCELLANEOUS.

Variation of
Humber
Dock Com-
pany's power
to pay inter-
est out of
capital.

108. Subsection (c) of section 106 (Power to Humber Company to pay interest out of capital during construction) of the Act of 1905 is hereby repealed and in lieu thereof the following provisions shall apply and have effect (that is to say) :—

The amount to be so paid for interest in respect of the first three hundred thousand pounds of capital shall not exceed fifty thousand pounds and in respect of the first five hundred and fifty thousand pounds of capital shall not exceed eighty thousand pounds and the aggregate amount to be so paid for interest shall not exceed one hundred and twenty thousand pounds and the amounts so paid shall not be deemed capital in respect of which the borrowing powers of the Humber Commercial Railway and Dock Company may be exercised but such borrowing powers shall be reduced to the extent of one third of the amount paid for interest as aforesaid.

109. Whereas pursuant to the Standing Orders of both Houses of Parliament and to the Parliamentary Deposits Act 1846 a sum of six thousand and eighty-two pounds and sevenpence two and a half per centum consolidated stock has been transferred into the name of the Paymaster-General for and on behalf of the Supreme Court in respect of the application to Parliament for this Act:

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Railway deposit fund not to be repaid except so far as Railways Nos. 1 and 1A are opened.

And whereas the sum of four hundred and fourteen pounds five shillings and twopence two and a half per centum consolidated stock (hereinafter referred to as "the railway deposit fund") being part of the said first-mentioned sum is equal to five per centum upon the amount of the estimate in respect of Railways Nos. 1 and 1A authorised by this Act in this section referred to as "the said railways":

And whereas the works originally proposed to be authorised by the Bill for this Act included a railway described in the said Bill and shown upon the deposited plans as Railway No. 3 and a pier the powers to construct which were struck out of the Bill during its progress through Parliament:

And whereas the balance of the said first-mentioned sum amounting to five thousand six hundred and sixty-seven pounds fifteen shillings and fivepence two and a half per centum consolidated stock (hereinafter referred to as "the works deposit fund") is equal to four per centum upon the amount of the estimate in respect of the said pier and five per centum upon the amount of the estimates in respect of the said Railway No. 3 and the works for the Widenings Nos. 1 2 3 and 4:

Be it enacted that notwithstanding anything contained in the said Act the said railway deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them (which persons survivors or survivor are or is in this Act referred to as "the depositors") unless the North Lindsey Company shall previously to the expiration of the period limited by this Act for completion of the said railways open the same for public traffic and if the North Lindsey Company shall make default in so opening the said railways the railway deposit fund shall be applicable and shall be applied as provided by the next following section Provided that if within such period as aforesaid the Company open any portion of the said railways for public traffic then on the production of a certificate of the

A.D. 1907. Board of Trade specifying the length of the portion of the said railways opened as aforesaid and the portion of the railway deposit fund which bears to the whole of the railway deposit fund the same proportion as the length of the railways so opened bears to the entire length of the said railways the High Court shall on the application of the depositors order the portion of the railway deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of this Act having passed anything in the above-mentioned Act to the contrary notwithstanding.

Application
of railway
deposit fund.

110. If the North Lindsey Company do not previously to the expiration of the period limited for the completion of the said railways complete the same and open them for public traffic then and in every such case the railway deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the said railways or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the North Lindsey Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit And if no such compensation is payable or if a portion of the railway deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the railway deposit fund or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the North Lindsey Company is insolvent or the undertaking has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the North Lindsey Company for the benefit of the creditors thereof and subject to such application shall be re-transferred to the depositors Provided that until the railway deposit fund has been re-transferred to the depositors or has become otherwise applicable as hereinbefore mentioned any interest or dividends accruing thereon shall from time to time

and as often as the same shall become payable be paid to or A.D. 1907.
on the application of the depositors.

111. On the application of the depositors in a summary way at any time after the passing of this Act the High Court may and shall order that the works deposit fund of five thousand six hundred and sixty-seven pounds fifteen shillings and five-pence two and a half per centum consolidated stock and the interest and dividends thereon shall be transferred and paid to the depositors or to any other person or persons whom the depositors may appoint in that behalf. Release of
works de-
posit fund.

112. From and after the passing of this Act the name of the Macclesfield Committee shall be changed to the Great Central and North Staffordshire Railway Committee. Change of
name of
Macclesfield
Committee.

113. Nothing in this Act contained shall exempt any company upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act. Provision as
to general
Railway
Acts.

114. All costs charges and expenses of the Company of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of
Act.

A.D. 1907.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.—RATES ON PERSONS USING THE WHARVES.

For every passenger or other person who shall land on the wharves from or embark from them on board of any vessel for each time any sum not exceeding - - - - -

PART II.—RATES ON PASSENGERS' LUGGAGE BICYCLES &C. LANDED
SHIPPED OR TRANSHIPPED AT THE WHARVES.

For every trunk portmanteau box parcel or other package within the description of luggage and not borne by passengers not exceeding 84 pounds	-	-	-	-	-	0	6
Over 84 pounds and not exceeding 224 pounds	-	-	-	-	-	1	0
And for every 20 pounds weight in addition	-	-	-	-	-	0	1
For every bicycle tricycle or other similar vehicle	-	-	-	-	-	0	4

PART III.—RATES ON VESSELS USING THE WHARVES.

For every vessel under the burden of 15 tons	-	-	-	0	6
For every vessel of the burden of 15 tons and over	-	-	-	1	0
All boats entirely open landing or taking on board passengers or goods each	-	-	-	-	0 6

PART IV.—RATES ON GOODS AND MATERIALS ANIMALS AND THINGS SHIPPED UNSHIPPED TRANSHIPPED RECEIVED OR DELIVERED AT THE WHARVES.

The classification is that annexed to and the Parts are the Parts of the schedule to the Railway Rates and Charges No. 12 (Manchester Sheffield and Lincolnshire Railway &c.) Order 1892:—

Goods and minerals included in Class A	-	-	per ton	0	6
„ „ „ „ B	-	-	„	0	9
„ „ „ „ C	-	-	„	1	0
„ „ „ „ 1	-	-	„	1	6
„ „ „ „ 2	-	-	„	2	0
„ „ „ „ 3	-	-	„	3	6
„ „ „ „ 4	-	-	„	4	0
„ „ „ „ 5	-	-	„	5	0

						s.	d.	A.D. 1907.
Animals included in Part II.	Description	1	-	-	each	1	6	—
"	"	2	-	-	"	1	0	
"	"	3	-	-	"	0	4	
Things included in Part III.	-	-	-	-	"	2	0	

(And sixpence for each additional quarter of a ton over the weight specified.)

Animals and things included in Part IV. such reasonable sum as the Company may think fit.

PART V.—RATES FOR THE USE OF WAREHOUSES.

	s.	d.
For every ton of goods which shall remain in any warehouse or shed or on any wharf not more than 2 days -	0	4
And for every part of a day after such 2 days -	0	1½
Or hire for warehouse &c. as may be agreed on.		
For any portmanteau trunk or other article of passengers' luggage for each day or part of a day after the first 24 hours -	0	2

PART VI.—RATES FOR THE USE OF CRANES.

For Cranes lifting under Six Tons.

	For the First Lift.	For each succeeding Lift.
	£ s. d.	£ s. d.
Under one ton -	0 2 6	0 0 4
One ton and under two tons -	0 3 0	0 0 6
Two tons and under three tons -	0 3 6	0 0 8
Three tons and under four tons -	0 4 0	0 0 10
Four tons and under five tons -	0 4 6	0 1 0
Five tons and under six tons -	0 5 0	0 1 2

For Cranes lifting up to Ten Tons.

	For the First Lift.	For each succeeding Lift.
	£ s. d.	£ s. d.
Six tons and under seven tons -	0 10 0	0 5 0
Seven tons and under ten tons -	1 0 0	0 10 0

Tentons and upwards any sum the Company think fit to demand.
The labour to be done by the parties requiring the use of the cranes.
In addition to the above rates for cranes sixpence per hour to be paid for wages to cranemen attending while the crane is in use.

A.D. 1907.

PART VII.—RATES FOR WEIGHING &C.

For weighing coal shipped into and removed from vessels at the wharves not exceeding twopence per ton.
For use of machinery employed for shipping coal not exceeding threepence per ton.
For use of barges for any purpose as by agreement.

PART VIII.—RATES FOR BALLAST.

	£	s.	d.
Stone ballast - - - - - per ton	0	3	0
Sand clay or other ballast including the shipping of same „	0	2	0
For ballast put in or taken out by vessel - - „	0	2	0

PART IX.—RATES FOR WATER.

	£	s.	d.
Water per twenty-five gallons - - - - -	0	0	3

THE SECOND SCHEDULE.

Stamp.



ARTICLES OF AGREEMENT made the thirtieth day of January one thousand nine hundred and seven between the BLYTON AND FRODINGHAM LIGHT RAILWAY COMPANY (hereinafter called “the Owing Company”) of the one part and the GREAT CENTRAL RAILWAY COMPANY (hereinafter called “the Working Company”) of the other part.

Owing Company to purchase land and construct railway.

1. The Owing Company shall at their own expense acquire in fee simple and free from all incumbrances land tax rents and out-goings (except a duly apportioned amount of tithe commutation rentcharge) and subject to the provisions of the Order next hereinafter mentioned all the necessary lands and properties for forming the site of or for the purposes of forming the railway junctions stations and works respectively described or referred to in and authorised by the Blyton and Frodingham Light Railway Order 1905 and which railway junctions stations works and conveniences are hereinafter included in the expression “the railway” and the Owing Company shall at their own expense forthwith proceed with and construct and finish the railway within the time limited by the Blyton and Frodingham Light Railway Order 1905 or such extended time if any as may hereafter be sanctioned.

Conditions to be observed in constructing railway.

2. The railway mentioned in Article 1—

(A) Shall be constructed on the gauge of four feet eight and a half inches exclusively with sufficient land for loops at the places already agreed on between the engineers of the Owing Company and the Working Company :

- (B) Shall be constructed with rails weighing at least seventy pounds per yard and in a manner proper and sufficient for receiving carrying and accommodating the working plant of the Working Company and no bridges or other structures except such as shall be agreed between the said engineer shall be of timber : A.D. 1907.
- (C) Shall be constructed finished fenced and completed for the public conveyance of passengers and goods to the reasonable satisfaction in all things of the engineer of the Working Company and in general accordance with the provisions of the said Order and with signals signal boxes and all appliances and apparatus connected therewith required by the Board of Trade or the Working Company and with all reasonable incidental works and conveniences at Meningham and Santon Appleby Stations and any other stations to be hereafter constructed with convenient approach roads thereto including the means of supplying and storing water for domestic and traffic and locomotive requirements :
- (D) The structures permanent way and ballasting shall be such as the Working Company's engineer shall reasonably approve and shall together with all works be carried out in such manner and according to such plans and details already agreed between the engineers of the Owing Company and the Working Company The Owing Company shall submit to the Working Company quarterly certificates showing the amount expended on land and works from time to time :
- (E) The railway shall comprise at the expense of the Owing Company all works and the performance of all obligations properly required by landowners road authorities and such bodies or persons as may have authority by statute or otherwise and all works rendered necessary by reason of roads being interfered with by the railway and all accommodations and other works whatsoever which on the opening of the railway are or may be necessary or proper for the purposes of the railway and the traffic thereon respectively and also the purchase of all mines and minerals which may at any time and from time to time be required to prevent subsidence of the railway by the working of such mines or minerals :
- (F) All roads which may be constructed (except as may be within the property of the Owing Company or are required for the accommodation of owners lessees or occupiers) shall be so constructed as to permit of their being taken over by the local authority and the Owing Company shall use their best endeavours to get such roads taken over within a year from the opening of the railway.

3. In the event of the Working Company being of opinion after the opening of the railway that additional land station accommodation sidings crossing places signals station agents' houses and other works or conveniences of any kind are from time to time requisite for the proper accommodation

Additional works and conveniences to be constructed by Owing Company.

A.D. 1907. and due development or the safe and convenient reception accommodation and conveyance of traffic and which the Owing Company would have had to construct had they worked the railway themselves (and which additional land accommodation sidings crossing places signals station agents' houses and other works are hereinafter distinguished by the expression "additional works") such works shall be completed by and at the expense of the Owing Company in all the particulars in Article 2 enumerated and to the satisfaction of the Board of Trade and of the Working Company and in default thereof the Working Company may provide the same on giving the Owing Company one month's notice of their intention to do so and the cost thereof shall be a debt against the Owing Company and recoverable in the ordinary way or the Working Company may deduct from the amount payable under this agreement to the Owing Company an amount equal to four per cent. on the cost above referred to Provided that any difference between the Owing Company and the Working Company with reference to additional works or the necessity for the same shall be settled by a person to be appointed on the application of either party by the Board of Trade.

Owing Com-
pany to supply
drawings deeds
&c.

4. The Owing Company shall at their own expense supply the Working Company with a complete set of plans sections and drawings showing the line and all the works as carried out and all the lands purchased and (if required) copies of all agreements and conveyances and shall satisfy the Working Company that all accommodation works agreed to be constructed have been duly and properly executed And the liability of the Working Company to maintenance shall extend only to such works beyond the actual line of railway (hereinafter referred to as "special works") as shall be specified in such agreements or of which specific notice shall before the opening of the railway be given to the Working Company.

Maintenance
during first
year's working.

5. The Owing Company shall at their own expense during one year after the opening of the railway uphold maintain and repair all the structures to the approval and under the superintendence and control of the Working Company and the Working Company shall at the expense of the Owing Company during such period uphold maintain and repair the permanent way and the signals telegraphs and other works (except the structures aforesaid) apparatus and conveniences incidental to the railway and the special works.

Working Com-
pany to work
railway

6. From and after the completion of the railway so as to be approved by the Board of Trade and by the engineer of the Working Company as fit for opening for public traffic in conformity with these articles and subject to the execution and completion of any such additional works as provided in Article 3 the Working Company shall exclusively and in perpetuity work and equip with all rolling stock and locomotive power tools and stores adequate and proper or required by the Working Company and shall exclusively manage work man and maintain the same and the works and conveniences thereof including the special works at their own expense (but subject and without prejudice to the obligation of the Owing Company under Article 5) and so as fully and fairly to accommodate and

develop the traffic both local and through and shall at all times use the railway so as to develop the traffic of the district. A.D. 1907.

7. The Working Company shall have the exclusive right of fixing the rates and fares for through and local traffic of all classes and description. Working Company to fix rates.

8. The Working Company shall pay all rates and taxes properly chargeable on the occupiers of the railway (including the apportioned tithe commutation rentcharge) and shall indemnify the Owing Company therefrom but the Owing Company shall out of the moneys payable to them under these articles pay the property or income tax and all rentcharges or annual payments by way of rent for lands taken by them for the purpose of the railway and all rates and taxes properly and usually payable by landlord (if any) including all unredeemed land tax. Rates rents and taxes.

9. The gross amount of all the tolls fares rates and charges from time to time payable in respect of the railways and the traffic thereon and received by the Working Company shall be divided between and belong to the two companies in the following proportions:— Division of gross receipts.

First The Working Company shall retain out of such amount of gross receipts the Government passenger duty from time to time payable:

Second Out of the balance the Working Company shall retain sixty per cent. of the total gross receipts:

Third The whole of the residue of such gross receipts then remaining shall belong to the Owing Company and shall be paid to them half-yearly each half-year ending as the case may be on the thirtieth day of June and the thirty-first day of December and such half-yearly payments shall be made not later than the first day of September and the first day of March in each year.

10. The gross amount referred to in Article 9 shall comprise—

(A) The gross tolls fares rates and charges received by the Working Company in respect of all local traffic arising and terminating on the railway inclusive of local receipts at cloak rooms and for advertisements and rents of bookstalls or refreshment rooms cottages wharves and superfluous lands and property of the Owing Company and other similar sources of revenue arising on the railway; and

(B) The rateable due mileage proportion of all the tolls fares rates and charges received in respect of all through traffic which is carried upon or over the railway or any portion thereof and also upon or over any other railways after the deduction of the usual Railway Clearing House terminals or in the case of coal and mineral traffic or in the case of traffic coming from stations of the Working Company such terminals as may be arranged by the Working Company such terminals accruing to the railway on through traffic arising at or terminating at stations upon the railway being credited to the railway as part of the gross amount in respect of such through traffic but neither the Working Company's stations at Blyton nor at Frodingham shall be considered to be stations on the railway for the purpose of this agreement.

Definition of gross receipts.

A.D. 1907.

Such gross amount shall not include in any case any "paid ons" nor money received or receivable for demurrage or for the collection cartage or delivery of traffic at to or from any station upon the railway or in connection therewith all which shall belong to and be retainable by the Working Company.

Allowance to
Owning Com-
pany on
through traffic.

11. If and whenever at any time after the opening of the railway the residue of the gross receipts so belonging to the Owning Company as aforesaid shall (after allowing by deduction from such residue a sum not exceeding five hundred pounds for directors' fees and office expenses) be insufficient in any one year ending on the thirty-first day of December to pay on so much of the share and loan capital of the Owning Company (not exceeding in all the sum of one hundred and twenty thousand pounds) as may for the time being have been issued and paid up a dividend or interest at the rate of four pounds per cent. per annum for such year then the Working Company will pay to the Owning Company in each such year out of the gross receipts of the Working Company attributable to its railways in respect of all through traffic conveyed by the Working Company and (subject to the proviso hereinafter contained) arising on or destined for the line of the Owning Company a rebate at the rate of ten per cent. on all such gross receipts of the Working Company attributable to its railways in respect of such traffic (excluding allowance for cartages "paid ons" demurrages and Government duty) but not beyond the extent required to make up the dividend or interest at the said rate of four per cent. for such year provided that in the interpretation of this article traffic arising or terminating on the North Lindsey Light Railway is not to be considered through traffic and the only traffic which is to be considered to be through traffic is traffic arising or terminating at a point on the railways of the Working Company or beyond not less than three miles from Frodingham or Blyton.

Division of sur-
plus profits.

12. Surplus profits of the Owning Company after payment of a dividend or interest at the rate of 4 per cent. on the paid up shares and loan capital as aforesaid of the Owning Company to be divided equally between the two companies.

Owning Com-
pany not to sell
&c. without
consent.

13. The Owning Company shall not sell or lease the railway or any part thereof to any company or person other than the Working Company without the assent of the Working Company in writing under seal nor shall they without such assent amalgamate their undertaking with any other undertaking than that of the Working Company nor accept a rebate from any other company or person.

Accounts.

14. Each of the companies will keep all such accounts and vouchers as shall be proper and sufficient for the purposes of these articles which accounts and vouchers shall be open at reasonable times to the inspection and transcription of the directors and agents of the companies respectively and the companies respectively will afford to each other all proper and sufficient facilities for the inspection and transcription of such accounts and vouchers.

15. Each of the companies will within a date to be agreed upon or in any case within one calendar month after the thirtieth of June and the thirty-first of December in every year transmit to the other an accurate abstract of such of the accounts as are from time to time necessary to be shown for any of the purposes of these articles and if and whenever either of the companies within thirty days after the transmission to them of any abstract of accounts requires the other company to verify the same they will do so and the abstract of accounts shall if necessary be made correct and shall thenceforth be deemed a settled account or if the thirty days be permitted to pass without requiring the verification of the abstract of accounts the same shall thereupon be deemed a settled account and no account once settled shall be re-opened.

A.D. 1907.

Abstracts to be delivered.

16. Every notice request account or other writing to be given by either of the companies to the other of them for any of the purposes of these articles shall be sufficient if it be sent by the secretary of the company giving such notice and be left addressed to the secretary of the other company as regards the Owing Company at their principal office for the time being or such other place as they shall from time to time notify in writing to the Working Company and as regards the Working Company at their principal office or such other place as they shall from time to time notify to the Owing Company.

Notices.

17. If and whenever any difference arises between the Owing Company or their assigns and the Working Company or their assigns touching the true intent and construction of these articles or anything to be done suffered or omitted in pursuance of them or any of the incidents or consequences of these articles or touching the carrying into effect of any of them or any breach or non-fulfilment or alleged breach or non-fulfilment of them or touching any liability damages losses costs or expenses by reason of any such breach or non-fulfilment or alleged breach or alleged non-fulfilment or any claim or demand relating to any such liability damages losses costs or expenses or otherwise relating to the premises every such difference shall unless hereinbefore otherwise specially provided be referred to and determined by arbitration in accordance with the provisions of the Railway Companies Arbitration Act 1859 and every question or matter so referred shall be deemed to be in difference between the companies parties hereto and this article shall accordingly be and have effect as an agreement between the companies for arbitration under that Act.

Arbitration.

18. If either company shall so desire there may be application to Parliament or the Board of Trade under the Railway Companies Powers Act 1864 by such company for confirming these articles and for making the provisions thereof or such of them as may be considered beyond the statutory authority of the companies or either of them fully obligatory and the other company shall join in and shall not oppose such application and the expense thereof shall be borne by the companies in such proportions as they may agree or as shall be settled by arbitration.

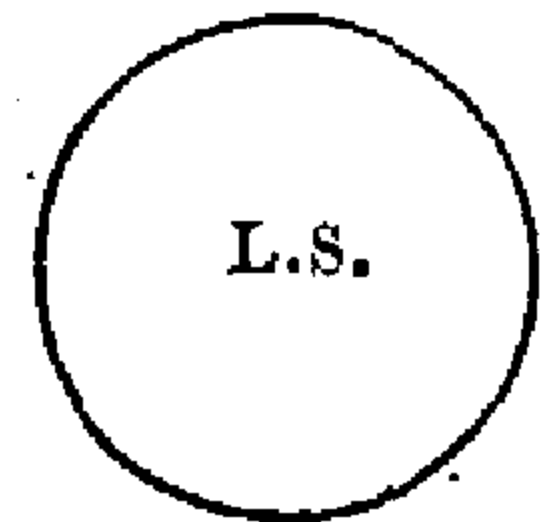
Confirmation of agreement.

19. This agreement is made subject to such alterations as Parliament may think fit to make therein.

Agreement subject to alteration by Parliament.

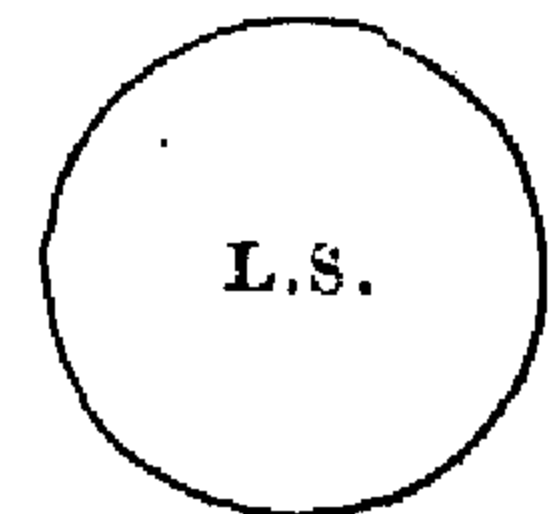
A.D. 1907. In witness whereof the two companies parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Blyton and Frodingham Light
Railway Company affixed hereto in the presence of }



ROBERT R. WILMOT }
J. HOWARD MOORE } Directors.
E. BANYON RUSSELL Secretary.

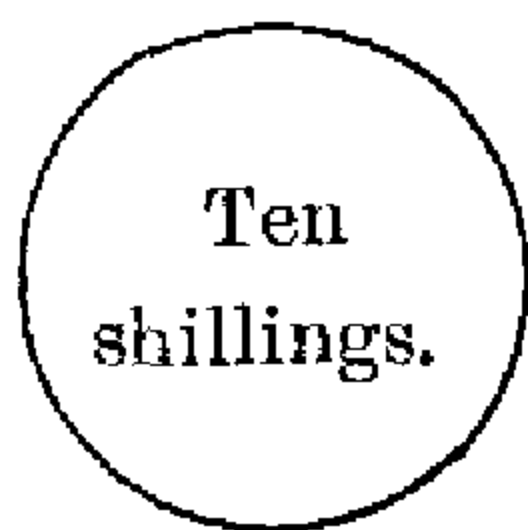
The common seal of the Great Central Railway
Company affixed hereto in the presence of }



O. S. HOLT Secretary.

THE THIRD SCHEDULE.

Stamp.



AGREEMENT made the eighth day of February one thousand nine hundred and seven between the NORTH LINDSEY LIGHT RAILWAYS COMPANY (hereinafter called "the Owing Company") of the one part and the GREAT CENTRAL RAILWAY COMPANY (hereinafter called "the Working Company") of the other part.

WHEREAS by the North Lindsey Light Railways Order 1900 (hereinafter called "the Order of 1900") the Owing Company were incorporated and authorised to construct a light railway in the county of Lincoln from Frodingham and Scunthorpe to Whitton Winterton and Winteringham :

And whereas by the North Lindsey Light Railways (Amendment) Order 1905 (hereinafter referred to as "the Order of 1905") the Owing Company were authorised to construct another light railway in the parishes of Scunthorpe and Crosby in substitution for part of the said railway authorised by the Order of 1900 and to abandon such part :

And whereas by the North Lindsey Light Railways (Extensions) Order 1906 (hereinafter referred to as "the Order of 1906") the Owing Company were authorised to construct three further light railways commencing by a junction with the Great Central Railway at Barton-on-Humber and extending in a westerly direction to Alkborough near the mouth of the River Trent and forming a junction at Whitton aforesaid with the railway authorised by the Order of 1900 :

And whereas the Owing Company have purchased the land for and have constructed and opened for traffic such part of the railway authorised by the Order of 1900 (as amended by the Order of 1905) as extends from

Frodingham to Thealby Road and are the owners thereof in fee simple free from incumbrances and the Owing Company desire to forthwith construct and complete the remainder of such railway and also all the railways authorised by the Order of 1906: A.D. 1907.

And whereas the Owing Company were by the said Orders of 1900 1905 and 1906 authorised to issue sixteen thousand five hundred shares of ten pounds each to a portion whereof not exceeding five thousand five hundred shares a preferential dividend not exceeding five pounds per centum per annum might be attached:

And whereas the Owing Company were by the said Orders of 1900 1905 and 1906 authorised to borrow sums not exceeding fifty-five thousand pounds by mortgage or the issue of debenture stock:

And whereas the Owing Company have out of their said authorised share capital issued six thousand ordinary shares of ten pounds each and six hundred four pounds per centum preference shares of ten pounds each and the Owing Company have borrowed the sum of thirty thousand pounds by the issue of four per centum redeemable debenture stock:

And whereas by the Great Central Railway Bill 1907 now pending in Parliament power is being sought for the Owing Company to construct railways to extend the railway authorised by the Order of 1900 to both sides of Winteringham Haven and to construct a pier and jetty at or near the mouth of the said haven and to enable the Owing Company to issue further capital and to authorise the Working Company to subscribe to the capital of the Owing Company to an amount not exceeding the sum of one hundred and thirty thousand pounds:

And whereas by articles of agreement dated the sixteenth day of December one thousand nine hundred and four under the common seals of the Owing Company and the Working Company it was agreed that the Owing Company should construct and the Working Company should work after the same should have been constructed upon the terms therein mentioned so much of the railway authorised by the said Order of 1900 (as to be amended by the Order of 1905) as has now been constructed and opened for traffic:

And whereas by a memorandum under the hands of their respective managers dated the fifth day of July one thousand nine hundred and five the Owing Company and the Working Company entered into heads of agreement whereby the Owing Company undertook the construction of the uncompleted portion of the railway authorised by the Order of 1900 and the railways then sought to be authorised by the Order of 1906 and the same were to be worked by the Working Company upon similar terms to those comprised in the said agreement of the sixteenth day of December one thousand nine hundred and four and by a further memorandum of even date also under the hands of the said respective managers it was provided that the Owing Company should give the Working Company an option to acquire the railways sought to be authorised by the Order of 1906 if authorised which option the Working Company have since given notice of their intention to exercise:

A.D. 1907.

And whereas the said articles of agreement of the sixteenth day of December one thousand nine hundred and four and the above-mentioned memoranda were subject to the sanction of Parliament for which the Owning Company and the Working Company undertook to apply :

And whereas the parties hereto have agreed that the Working Company shall rescind their right to acquire the railways authorised by the Order of 1906 and that the parties hereto shall enter into the agreement hereinafter contained upon the same being sanctioned and confirmed by Parliament :

Now it is hereby agreed and declared as follows :—

Owning Com-
pany to pur-
chase land.

1. The Owning Company shall at their own expense acquire in fee simple and free from all incumbrances land tax rents and outgoings (except a duly apportioned amount of tithe commutation rentcharge) and subject to the provisions of the respective Orders or Act affecting the same all the necessary lands and properties together with all mines and minerals lying under and within fifty feet from the surface for forming the site of or for the purposes of forming so much of the railway junctions stations and works respectively described or referred to in and authorised by the Order of 1900 (as amended by the Order of 1905) (except so much thereof as has already been constructed) the railways authorised by the Order of 1906 and the railways pier and jetty if and when the same be authorised by the Great Central Bill 1907 (the application for which the Owning Company hereby undertake to support) and the Owning Company shall at their own expense forthwith proceed with and construct and finish all the said railways and works within the time limited by the said respective Orders or Act affecting the same or such extended time if any as may hereafter be sanctioned.

Owning Com-
pany to con-
struct railways
jetty and pier.

2. The railways and works mentioned in Article 1—

- (A) Shall be constructed as regards the railways therein mentioned on the gauge of four feet eight and a half inches exclusively with sufficient land for loops at such places as shall be agreed upon between the engineers of the Owning Company and the Working Company :
- (B) Shall be constructed in a manner proper and sufficient for receiving carrying and accommodating the working plant of the Working Company and no bridges or other structures except such as shall be agreed between the said engineers shall be of timber :
- (C) Shall be constructed finished fenced and completed for the public use thereof by passengers and goods to the reasonable satisfaction in all things of the engineer of the Working Company and within the times and in general accordance with the provisions of the respective Orders or Act and with signals signal boxes and all appliances and apparatus connected therewith required by the Board of Trade or reasonably required by the Working Company with telegraph and telephone communication electric block or tablet system as the engineer

A.D. 1907.

of the Working Company may reasonably require and with all reasonable incidental works and conveniences at Winteringham Whitton Alkborough and South Ferriby Stations and any other station on the said railways to be hereafter constructed with convenient approach roads thereto including the means of supplying and storing water for domestic and traffic and locomotive requirements :

- (D) The Owing Company shall provide stopping places at the said railway stations with cottages and platforms and with all accommodation considered necessary by the Working Company for dealing with goods traffic and storage for water and if the Working Company at any time and from time to time reasonably require it additional sidings or passing places on the said railways with similar equipment shall be provided by and at the expense of and on land to be provided by the Owing Company :
- (E) The structures permanent way and ballasting of the said railways and the structure of the said pier and jetty shall together with all works connected therewith or incidental thereto respectively be carried out in such manner and according to such plans and details as the engineer of the Working Company shall reasonably approve and if at any time during the construction of the said railways and works or any part thereof the engineer of the Working Company shall notify to the Owing Company that he considers any of the said works or any part thereof unnecessary or excessive or that the same are being carried out at too great expense then the Owing Company shall omit or amend the same to meet the reasonable requirements of the engineer of the Working Company The Owing Company shall submit to the Working Company quarterly certificates showing the amount expended on land and works from time to time :
- (F) The railway and works shall comprise at the expense of the Owing Company all works and the performance of all obligations properly required by landowners road authorities and such bodies or persons as may have authority by statute or otherwise and all works rendered necessary by reason of roads being interfered with by the said railway and works and all accommodation and other works whatsoever which on the opening of the said railway and works or part thereof respectively are or may be necessary or proper for the purposes of the said railways or works so opened and the traffic thereon thereto and therefrom respectively and also the purchase of all additional mines and minerals which may at any time and from time to time be required to prevent subsidence of bridges and buildings on the said railways or of the said pier and jetty through the working of such mines or minerals and the purchase of all mines and minerals lying within fifty feet of the surface

A.D. 1907.

of the formation level of the said railways and the foundations of the said pier and jetty which may at any time and from time to time be required to prevent subsidence of the said railways pier and jetty :

- (e) All roads which may be constructed (except such as may be within the property of the Owing Company or are required for the accommodation of owners lessees or occupiers) shall be so constructed as to permit of their being taken over by the local authority and the Owing Company shall use their best endeavours to get such roads taken over within a year from the opening of such part of the said railways and works in respect of which such roads shall have been constructed and in default thereof shall maintain such roads at their own expense until the same are taken over.

Interpretation.

3. The said railways to be constructed under Article 1 hereof are together with so much of the constructed portion of the railway authorised by the Order of 1900 (as amended by the Order of 1905) hereinafter referred to as "the railways" and the expression "the railways and works" when hereinafter used shall be deemed to include all the said railways together with the said pier and jetty and all works connected therewith or incidental thereto.

Owing Company to convey land for extension of Working Company's goods yard at Frodingham.

4. In case the Working Company shall at any time hereafter desire to extend their goods yard at Frodingham up to the new road to Lindsey works shown on the Plan No. 1 hereto annexed and of such desire shall give the Owing Company three calendar months' notice in writing then the Owing Company shall sell to the Working Company at cost price without interest so much of the Owing Company's land adjoining the Working Company's railway as the engineer of the Working Company shall require and the Owing Company shall before the expiration of such notice at their own cost divert their sidings and works from the said land and reconstruct such sidings and works under the supervision and to the satisfaction of the Working Company's engineer.

Additional works and conveniences to be constructed by Owing Company.

5. In the event of the Working Company being of the opinion from time to time after the opening of the railways and works or any part thereof that additional land station accommodation sidings crossing places signals station agents' houses sheds warehouses tips cranes plant machinery or any other works or conveniences of any kind are from time to time requisite for the proper accommodation and due development or the safe and convenient reception accommodation handling and conveyance of traffic and such as the Owing Company would have had to construct had they worked the railways and works themselves (and which additional land station accommodation sidings crossing places signals station agents' houses sheds warehouses tips cranes plant machinery and other works or conveniences are hereinafter distinguished by the expression "additional works") such additional works shall upon reasonable notice being given to the Owing Company by the Working Company be completed by and at the expense of the Owing Company in all the particulars in Article 2 enumerated

and to the satisfaction of the Board of Trade and of the Working Company and in default thereof the Working Company may provide the same on giving the Owing Company three months' notice of their intention to do so and the cost thereof shall be a debt against the Owing Company and recoverable in the ordinary way or the Working Company may deduct from the amount payable under this agreement to the Owing Company an amount equal to four per centum per annum on the cost above referred to. Provided that any difference between the Owing Company and the Working Company with reference to additional works or the necessity for the same shall be settled by a person to be appointed on the application of either party by the Board of Trade.

A.D. 1907.

6. The Owing Company shall at their own expense supply the Working Company with a complete set of plans sections and drawings showing all the railways and works as carried out and all the lands purchased and (if required) copies of all agreements and conveyances and shall satisfy the Working Company that all accommodation works agreed to be constructed have been duly and properly executed. And the liability of the Working Company to maintenance shall extend only to such works beyond the actual line of the railways and works (hereinafter referred to as "special works") as shall be specified in such agreements or conveyances or of which specific notice shall be given before the opening of the railways and works or any part thereof be given to the Working Company and which shall be reasonably approved by them.

Owing Com-
pany to supply
drawings deeds
&c.

7. The Owing Company shall at their own expense during one year after the opening of any part of the railways and works uphold maintain and repair all the structures of the part so opened to the approval and under the superintendence and control of the Working Company and the Working Company shall at the expense of the Owing Company or the Owing Company may at their own expense during such period uphold maintain and repair the permanent way and the signals telegraphs and other works (except the structures aforesaid) apparatus and conveniences incidental to any part of the railways and works so opened from time to time and the special works connected therewith.

Maintenance
by Owing
Company.

8. From and after the completion of the railways and works or any part thereof so as to be approved by the Board of Trade and by the engineer of the Working Company as fit for opening for public traffic or use in conformity with these articles and subject to the execution and completion of any such additional works as provided in Article 6 the Working Company shall exclusively and in perpetuity work and equip with all adequate and proper rolling stock and locomotive power tools and stores and shall exclusively manage work man and maintain the same and the works and conveniences thereof including the special works at their own expense (but subject and without prejudice to the obligation of the Owing Company under Article 7) and so as fully and fairly to accommodate and develop the traffic both local and through and shall at all times use such parts of the railways as shall be open for public traffic so as best to develop both local and through traffic and shall at all

Working Com-
pany to work
railways and
works.

A.D. 1907. times use the said pier and jetty so as to develop the same as a port for the shipment of coal iron ironstone slag and kindred materials.

Working Com-
pany to fix
rates.

9. Through rates for through traffic on ironstone arising on the railway authorised by the Order of 1900 and passing through Frodingham shall not (without the consent of the Owing Company) be higher per mile as compared with like rates between Frodingham Station and stations on the Great Central system and beyond but subject thereto the Working Company shall have the exclusive right of fixing the rates and fares for through and local traffic of all classes and descriptions and such rates shall include fair rates for the shipment of coal iron ironstone slag and kindred materials at the said pier and jetty and in fixing rates for the shipment of coal at the said pier and jetty regard shall be had to the rates in force for similar traffic at Grimsby Immingham and Keadby.

Rates taxes
and rents.

10. The Working Company shall pay all rates and taxes properly chargeable on the occupiers of the railways and works (including the apportioned tithe commutation rentcharge) and shall indemnify the Owing Company therefrom but the Owing Company shall out of the moneys payable to them under these articles pay the property or income tax and all rentcharges or annual payments by way of rent for lands taken by them for the purpose of the railways and works (including a rent in respect of the proportionate use of the Barton-upon-Humber Station of the Working Company) and all rates and taxes properly and usually payable by landlord (if any) including all unredeemed land tax.

Division of
gross receipts.

11. The gross amount of all the tolls fares rates dues and charges from time to time payable in respect of the railways and works and the traffic and use thereof received by the Working Company shall be divided between and belong to the two companies in the following proportions:—

First The Working Company shall retain out of such amount of gross receipts the Government passenger duty from time to time payable:

Second Out of the balance the Working Company shall retain sixty per centum of the total gross receipts:

Third The whole of the residue of such gross receipts then remaining shall belong to the Owing Company and shall be paid to them half-yearly each half year ending as the case may be on the thirtieth day of June and the thirty-first day of December and such half-yearly payments shall be made not later than the first day of September and the first day of March in each year.

Definition of
gross receipts.

12. The gross amount referred to in Article 11 shall comprise—

(A) The gross tolls fares rates dues and charges received by the Working Company in respect of all local traffic arising and terminating on the railways and works inclusive of local receipts at cloak rooms and for advertisements and rents of bookstalls or refreshment rooms cottages wharves sheds warehouses and superfluous lands and all other property of the Owing Company and other similar sources of revenue arising on the railways and works; and

(B) The rateable due mileage proportion of all the tolls fares rates A.D. 1907.
and charges received in respect of all through traffic which

is carried upon or over the railways or any portion thereof
and also upon or over any other railway after the deduction
of the usual Railway Clearing House terminals which ter-
minals nevertheless shall in the case of coal coke cinders
ironstone slag and limestone traffic be threepence per ton such
terminals (except as hereinafter mentioned) accruing to the
railways and works on through traffic arising at or terminating
upon the railways and works to be credited to the railways
and works as part of the gross amount hereinbefore defined
in respect of such through traffic but the Working Com-
pany's stations at Frodingham and Barton-on-Humber shall
not be considered to be stations on the railways for the purpose
of this agreement:

(c) The terminals on all mineral traffic arising out of the lands shown
by red green yellow blue and purple colours on the plan
(No. 2) hereto annexed shall be treated as if such traffic
arose on the railway of the Working Company.

Such gross amount shall not include in any case any "paid ons" nor
money received or receivable for demurrage or for the collection cartage or
delivery of traffic at to or from any station upon the railways or in
connection therewith or at to or from the said pier and jetty all which shall
belong to and be retainable by the Working Company.

13. If and whenever at any time after the opening of the railways and
works or any part thereof the residue of the gross receipts so belonging
to the Owing Company as aforesaid shall after allowing by deduction
from such residue a sum not exceeding five hundred pounds for directors'
fees and office expenses be insufficient in any one year ending on the thirty-
first day of December to pay on so much of the share and loan capital
of the Owing Company as may for the time being have been issued and
paid up a dividend or interest at the rate of four per centum per annum
for such year then the Working Company will pay to the Owing Company
in each such year out of the gross receipts of the Working Company
attributable to its railways in respect of all through traffic conveyed by
the Working Company and (subject to the proviso hereinafter contained)
arising on or destined for the railways of the Owing Company a rebate or
allowance at the rate of ten per centum on all such gross receipts of the
Working Company attributable to its railways in respect of such traffic
(excluding allowance for cartages "paid ons" demurrage and Government
duty) but not beyond the extent required to make up the dividend or interest
to the said rate of four per centum for such year upon so much of the issued
share and loan capital of the Owing Company as shall not exceed the
amount previously agreed between the engineers of the two companies as
the working estimate for the construction of so much of the railway and
works as shall then be open for traffic provided that in the interpretation
of this article traffic is only considered to be through traffic when it arises
or terminates beyond the area coloured red green yellow blue or purple on

Allowance to
Owing Com-
pany on
through traffic.

A.D. 1907. — the plan (No. 2) hereto annexed and at a point on the Great Central system beyond three miles of Frodingham Station.

Division of surplus profits.

14. Surplus profits of the Owing Company after payment of a dividend or interest at the rate of four per centum on the paid-up ordinary shares and loan capital and five per centum on the paid-up preference shares of the Owing Company shall be divided equally between the two companies.

Power to vary Articles 13 and 14.

15. If at any time before the thirty-first day of December one thousand nine hundred and nine the Owing Company shall release the Working Company from making the rebate or allowance to the Owing Company on through traffic under Article 13 hereof the right of the Working Company to share in the surplus profits under Article 14 hereof shall cease and be determined.

Provision of capital by Working Company.

16. An estimate shall be forthwith prepared by the engineers of the Owing Company and the Working Company of the cost of constructing the railways and works and the Working Company shall by subscription (with the sanction of Parliament) to the capital of the Owing Company or by causing such share and loan capital to be taken up by their proprietors or others provide to the Owing Company such sum not exceeding in the whole the sum of one hundred and thirty thousand pounds as shall be required for the cost of the works already executed and for the works to be executed by the Owing Company under the terms of this agreement. Of the aforesaid sum part namely twenty-four thousand pounds shall be subscribed and paid by the Working Company to the Owing Company within one month of the sanction of Parliament being obtained to these articles and upon the Owing Company proving to the satisfaction of the Working Company that the whole of the debts of the Owing Company in respect of the aforesaid works already constructed and of the site thereof have been duly paid and discharged or provided for. The balance of the said sum to be subscribed by the Working Company shall be subscribed and paid from time to time by them in such instalments as shall be necessary to put the Owing Company in funds from time to time for the completion of the railways and works. The Working Company may upon subscribing the said sum of twenty-four thousand pounds elect that the amount of such subscription shall be appropriated in such proportions as they think fit in part payment of any shares stock or debentures which the Working Company may direct shall be issued to them by the Owing Company and thereupon the Owing Company shall issue such shares stock or debentures as part paid to the Working Company. The Working Company and its successors and nominees shall be entitled to one vote in respect of each ordinary or preference share held by them.

Owing Company not to sell or lease.

17. The Owing Company shall not sell or lease the railways and works or any part thereof to any company or person other than the Working Company or allow any other company to run over or use the same without the previous assent of the Working Company in writing under seal nor shall they without such assent amalgamate their undertaking with any other undertaking than that of the Working Company nor accept a rebate from any other company or person.

18. Each of the companies will keep all such accounts and vouchers as shall be proper and sufficient for the purposes of these articles which accounts and vouchers shall be open at reasonable times to the inspection and transcription of the directors and agents of the companies respectively and the companies respectively will afford to each other all proper and sufficient facilities for the inspection and transcription of such accounts and vouchers.

A.D. 1907

Accounts.

19. Each of the companies will within a date to be agreed upon or in any case within one calendar month after the thirtieth day of June and the thirty-first day of December in every year transmit to the other an accurate abstract of such of the accounts as are from time to time necessary to be shown for any of the purposes of these articles and if and whenever either of the companies within thirty days after the transmission to them of any abstract of accounts require the other company to verify the same they will do so and the abstract of accounts shall if necessary be made correct and shall thenceforth be deemed a settled account or if the thirty days be permitted to pass without requiring the verification of the abstract of accounts the same shall thereupon be deemed a settled account and no account once settled shall be re-opened.

Abstracts to be delivered.

20. Every notice request account or other writing to be given by either of the companies to the other of them for any of the purposes of these articles shall be sufficient if it be sent by the secretary of the company giving such notice and be left addressed to the secretary of the other company as regards the Owing Company at their principal office for the time being or such other place as they shall from time to time notify in writing to the Working Company and as regards the Working Company at their principal office or such other place as they shall from time to time notify to the Owing Company.

Notices.

21. If and whenever any difference arises between the Owing Company or their assigns and the Working Company or their assigns touching the true intent and construction of these articles or anything to be done suffered or omitted in pursuance of them or any of the incidents or consequences of these articles or touching the carrying into effect of any of them or any breach or non-fulfilment or alleged breach or non-fulfilment of them or touching any liability damages losses costs or expenses by reason of any such breach or non-fulfilment or alleged breach or alleged non-fulfilment or any claim or demand relating to any such liability damages losses costs or expenses or otherwise relating to the premises every such difference shall unless hereinbefore otherwise specially provided be referred to and determined by arbitration in accordance with the provisions of the Railway Companies Arbitration Act 1859 and every question or matter so referred shall be deemed to be in difference between the companies parties hereto and this article shall accordingly be and have effect as an agreement between the companies for arbitration under that Act.

Arbitration

22. Subject to these articles the Owing Company shall act separately but in friendly co-operation with the Working Company in all matters in which the rights and interests of the Owing Company may be concerned.

Acts by the Owing Company.

A.D. 1907. and shall be entitled to oppose any Bills and to prosecute or defend all such actions and generally to take all such steps which shall not in any way injuriously affect the rights and interests of the Working Company as may be considered by the Owing Company to be necessary to safeguard its interests The costs of such proceedings shall be apportioned between the Owing Company and the Working Company as may be agreed.

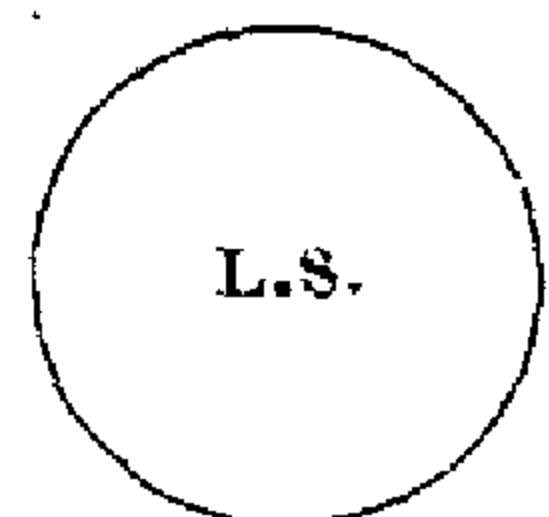
Confirmation
by Parliament.

23. These articles shall be confirmed by the shareholders of both companies and are subject to confirmation thereof by Parliament and either company may apply to Parliament for the confirmation thereof and for making the provisions thereof or such of them as may be considered beyond the statutory authority of the companies or either of them fully obligatory and the other company shall join in and shall not oppose such application and the expense thereof shall be borne by the companies in such proportions as they may agree or as shall be settled by arbitration.

In witness whereof the two companies parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

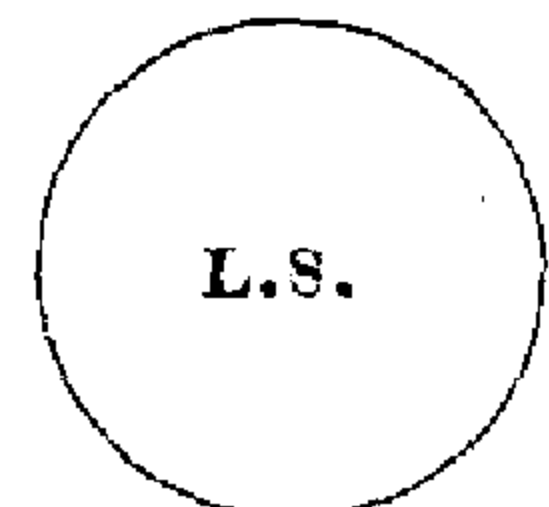
The common seal of the North Lindsey Light
Railways Company was affixed hereto in the
presence of

GEORGE DOVE Chairman.



The common seal of the Great Central Railway
Company was affixed hereto in the presence of

O. S. HOLT Secretary.



THE FOURTH SCHEDULE.

DESCRIBING PROPERTIES WHEREOF PORTIONS ONLY ARE REQUIRED
TO BE TAKEN.

Parish or other Area.	Numbers on deposited Plans.
WIDENING No. 2.	
Township and county borough of Sheffield - - -	11.
RAILWAYS Nos. 1 and 1A.	
Winteringham - - - - -	5 and 6.
RAILWAYS Nos. 4 5 6 7 and 8.	
Township or parish of Adwick-le-Street - - -	4 and 10.

THE FIFTH SCHEDULE.

A.D. 1907.

RAILWAYS FORMING THE JOINT UNDERTAKING OF THE GREAT
WESTERN AND GREAT CENTRAL RAILWAYS JOINT COMMITTEE.

1. The railway between Princes Risborough and Grendon Underwood authorised by the Great Western and Great Central Railway Companies Act 1899 except such part thereof between Ashendon and Grendon Underwood transferred to and vested in the Great Central Railway Company alone by the section of the foregoing Act whereof the marginal note is "Transfer to Company of portion of Great Western and Great Central Joint Railways."

2. So much of the Wycombe and Oxford Railway authorised by the Wycombe Railway Act 1846 and the Wycombe Railway Extension Act 1857 as extends from the junction at Princes Risborough of that railway with the railway first hereinbefore described and the junction at High Wycombe with the Acton and Wycombe Railway thirdly hereinafter described together with the improvement widening and alterations of the same authorised by the Great Western and Great Central Railway Companies Act 1899.

3. So much of the Acton and High Wycombe Railway authorised by the Great Western Railway Act 1897 as extends from its junction at High Wycombe with the said Wycombe and Oxford Railway and its junction at Northolt with Railway No. 1 authorised by the Great Central Railway Act 1898.

4. The railway between Princes Risborough and Aylesbury authorised by the Wycombe Railway (Extensions to Oxford and Aylesbury) Act 1861 together with all the interest of the Great Western Company in the Aylesbury Joint Station of the Great Western and Metropolitan Railway Companies.

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